
EBOOK VOLUME 1. GENERAL GUIDANCE & INFORMATION

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CHAPTER 1. HANDBOOK PURPOSE, USE AND TERMINOLOGY

Section 1. General Handbook Information

1.1.1.1. Purpose.

A. This manual contains the GACARs Implementing Policies, Processes, and Procedures and directs the activities of General Authority of Civil Aviation (GACA) aviation safety inspectors, engineers, and specialists responsible for the certification, technical administration, surveillance, compliance enforcement and the resolution of identified safety concerns of all aircraft, airmen, air operators, air agencies, aerodromes, air navigation service providers and many other aviation activities conducted in accordance with the applicable parts of the General Authority of Civil Aviation Regulations (GACARs).

B. This manual also, provides the required information to all regulated entities under the GACA Aviation Safety Regulations (GACARs) on the GACARs implementation policies, processes, and procedures that are applied to those entities by GACA Inspectors, engineers, and specialists.

C. This manual contains mandatory policies and procedures guidance for inspectors, engineers, and specialists. All inspectors, engineers, and specialists will be expected to follow the mandatory policies and procedures unless otherwise authorized by the President. If the guidance in this manual conflicts with the GACAR, the GACAR takes precedence. Inspectors should refer questions about such conflicts to their immediate supervisors.

D. This manual also provides direction for tasks related to aircraft accidents and incidents, investigations, the State Safety Program, administrative areas, and miscellaneous tasks not related to a specific regulation.

E. In addition, it contains requirements for other Aviation Safety & Environmental Sustainability Sector personnel performing duties in the support of Inspectors.

1.1.1.3. Standardization and Coordination.

A major objective of the GACA Aviation Safety & Environmental Sustainability Sector is to standardize the functions of the Inspector, Engineer, and Specialist positions. For this reason, any change to this manual must be in accordance with the approved Aviation Safety & Environmental Sustainability revision process.

A. Deviations from this Manual. Inspectors, engineers, or specialists who find that specific requirements in this manual do not apply to a specific case, should forward a request, through their supervisor/manager, to the Executive Vice President (EVP) of the Aviation Safety & Environmental Sustainability for permission to deviate from the requirements. The request should specify the alternate means that will be used to meet the intent of the guidance or procedures from which he wishes to deviate from. The EVP will assess the deviation request and either accept or deny the request. The EVP decisions will be communicated to the General Manager of the affected Department via a signed memo.

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B. Authority to Change This Document. The Aviation Safety & Environmental Sustainability Executive Vice President or his delegates must approve all changes to this manual. Prior to any change, the EVP may appoint a review committee to study all proposed changes. The committee will study the proposed changes and provide the EVP with recommended action.

C. Conflicts with Other GACA Guidance. The guidance in this manual may conflict with guidance previously issued by GACA in other policy documents and directives. This situation may arise inadvertently or because it is impractical to revise all orders simultaneously. In such a case, use the guidance with the most recent date. If the guidance in this manual conflicts with the GACAR, the GACAR takes precedence. Inspectors should refer questions about such conflicts to their immediate supervisors.

D. Availability of this Manual. This manual is available to both GACA personnel and to individuals outside the GACA. Inspectors should advise operators and other service providers of the availability of this Manual.

1.1.1.5. Manual Revisions.

NOTE: Individuals at all levels of the GACA Aviation Safety & Environmental Sustainability and individuals in the aviation industry are encouraged to make suggestions for revisions to the manual.

A. Policy Questions or Concerns. Questions or concerns regarding policy issues that cannot be resolved by the applicable General Manager must be coordinated with the EVP. In that situation the General Manager should contact the EVP and provide complete details regarding the issue or concerns, including reasons why he is not able to resolve the issue or concern.

B. Manual Revision Process. The Aviation Safety & Environmental Sustainability revision process is coordinated and managed by the Aviation Safety & Environmental Sustainability Regulations & Standards Department under the authority of the Executive Vice President Aviation Safety & Environmental Sustainability. The need for a revision may become evident when a change occurs in the aviation industry, within the GACAR, the GACA organization, GACA policies or changes in the global civil aviation domain. The revision process follows the following steps:

- 1- The EVP issues instructions for the revision with the assignment to the appropriate Aviation Safety & Environmental Sustainability personnel to develop and prepare the required revision.
- 2- Review and Notification. The Regulations & Standards Department is the custodian of this manual. The Regulations & Standards Department (in coordination with the EVP) will review and consider all questions, concerns, or suggestions submitted. The Regulations & Standards Department will acknowledge receipt of each suggestion.
- 3- The Regulations & Standards Department coordinates and manages the preparation of the required revision, then prepares the standard GACA eBook Amendment Docket (**GACA_EBOOK_F-002**).
- 4- The GACA eBook Amendment Docket is then raised to the Executive Vice President Aviation Safety & Environmental Sustainability for evaluation and EVP approval.

C. Presentation of Changes. Each revision to a volume of this manual results in the version being indexed upward by one. The version of each volume is noted in the document footer (when printed) and in the volume title as read online. A LOG OF VERSIONS is maintained that can be used to track all of the current and prior versions to each volume of the manual. A SUMMARY OF CHANGES is also maintained that provides a brief explanation of all the changes of the

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manual.

1.1.1.7. Directive and Guidance Information.

A. Directive Information. Directive information is information considered directive in nature, contains terms such as "shall," "will," or "must," and means the actions are mandatory. "Shall not" prohibits the action. The use of these terms will leave no flexibility, and Inspectors must follow their direction unless otherwise authorized by the EVP.

B. Guidance Information. Guidance information is information considered guiding in nature and will contain terms such as "should" or "may." These terms indicate actions that are desirable, permissive, or not mandatory, and allow flexibility.

C. The Use of FAA and ICAO Guidance Material Incorporated by Reference. In certain specified circumstances, guidance information published by the Federal Aviation Administration (FAA) or the International Civil Aviation Organization (ICAO) is incorporated by reference in this manual. The FAA guidance information may contain references to the FAA organization structure and regulatory structure that are not applicable in the Kingdom of Saudi Arabia (KSA). In general, when FAA guidance material is incorporated by reference, Inspectors should follow the technical content presented. Content referring to FAA procedures, processes and databases that are clearly not applicable in the KSA should generally be ignored. If Inspectors are unsure of how to proceed, they should consult with their supervisor. The ICAO guidance information is generally sufficiently general in nature that it is applicable to any State but if Inspectors are unsure of how to proceed, they should consult with their supervision.

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Section 2. Writing Principles for GACA Aviation Standards Regulatory Documents

1.1.2.1. PURPOSE. The purpose of this section is to stipulate the writing principles for GACA Aviation Standards regulatory documents. Such documents include, but not limited to the GACARs, GACA eBooks, Advisory Circulars (GACA-ACs), and Safety Bulletins (GACA-SBs).

1.1.2.3. GENERAL. The drafter of GACA regulatory documents needs to be clear and concise when writing such documents. This is important because all aviation service providers are expected to align with these provisions. If they can't understand what is written, it could lead to confusion which can lead to inconsistent implementation, inefficiency, and risk.

Writing in plain language does not mean “dumbing down” the provisions. It means writing in clear, concise, and easy to understand language. It is often more difficult to express provisions in this manner because some provisions are necessarily complex. Although there are several simple techniques to make your writing clear and effective. This section describes the most critical ones. You must follow them when writing GACA related documents.

This document contains the following principles that should be used when writing GACA Aviation Standards regulatory documents:

1. Organize your document.
2. Clarify the Primary intent of a provision.
3. Write informative headings.
4. Introduce each paragraph with a topic sentence.
5. Write in the Active Voice.
6. Use of Verbs.
7. Avoid unnecessary qualifiers.
8. Be Consistent.
9. Be Positive.
10. Use consistent grammatical structures.
11. Use Short, Simple Words.
12. Write Short Sentences.
13. Write Short Paragraphs.
14. Avoid dense text and complex instructions.
15. Use of Brackets.
16. Use of the Forward Slash
17. Avoid Noun Clusters.
18. Use of Numbers and Symbols.
19. Use gender-free language.
20. Use of digits.
21. Use of more than one unit of measure.
22. Use of Singular vs. Plural.
23. Use of Means and Includes.

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- 24. Use of Abbreviations and Acronyms.
- 25. Use of quotation marks.
- 26. Use of figures.

1.1.2.5. WRITING PRINCIPLES FOR GACA REGULATORY DOCUMENTS.

1- Organize your document.

The key to clear writing is to present material in the order that is most useful to the reader. If your document deals with a process, organize it chronologically, first step to last. You can also organize documents by putting the most important points first and the minor ones at the end. Put standard provisions first and exceptions last. Sometimes a combination of these organizational methods is useful. Whichever method you use, keep your reader in mind and be consistent. Ask yourself, "What will help my reader understand and follow my document?"

2- Clarify the Primary intent of a provision.

Be clear about the primary intent of a provision. For example, if the intent is to ensure an operator carries out specific checks, it is better to write "The operator must carry out checks..." rather than "The operator must establish procedures to carry out checks..." The former focuses on the intent of the provision, while the latter focuses on the need to establish procedures. While the operator does need to establish the necessary procedures in order to carry out the checks, the second formulation detracts from the primary intent of the provision. It should be implicitly understood that procedures will need to be established for the checks to be carried out properly.

3- Write informative headings.

Most documents benefit from headings. However, it's important that you use useful headings. After good organization and active voice, informative headings are the most helpful way to guide readers through your document. Your reader should be able to decide, based on the heading, if they need to read a paragraph. Don't waste a reader's time by using headings that are not informative, such as "general" or "transfer" or "training." Instead, headings should give the reader a synopsis of what information follows, such as "General Information about Markings" and "Transferring Responsibility for Maintaining an Aircraft." Since most readers come to our documents with questions in mind, headings in the form of questions are often the most effective way to direct the reader to information he or she wants to find, such as "How many hours of training must I have?"

4- Introduce each paragraph with a topic sentence.

A topic sentence ensures that each paragraph is cohesive. It should capture the essence of what's in the entire paragraph. The rest of the paragraph supports and expands on the topic sentence. A reader should be able to follow the basic points of your document by skimming the topic sentences.

5- Write in the Active Voice.

Active voice makes it clear who is supposed to do what.

It eliminates ambiguity about responsibilities. In an active sentence, the person or agency that is acting is the subject of the sentence. By contrast, passive voice obscures who is responsible for what. Interpretation and translation are made more difficult. In a passive sentence, the person or item that is acted upon is the subject of the sentence. Passive sentences often do not identify who is performing the action.

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Do not write	But write
The Hunt for Red October was written by Tom Clancy.	Tom Clancy wrote The Hunt for Red October
The report must be submitted within ten days.	The operator must submit the report within ten days.

There may however be instances where active voice may convey the incorrect intent.

For example, the active voice of the provision —*The procedure should be approved by the regulator* would be —*The regulator should approve the procedure*. Although not intended, the active voice could be read as the regulator being obliged to approve the procedure. So, while active voice is preferred, sometimes the use of passive voice may be appropriate.

6- Use of Verbs.

The simplest and strongest form of a verb is present tense. The use of conditional or future tense makes it harder for the reader to understand your meaning.

Avoid hidden verbs. A hidden verb is a verb converted into a noun. Hidden verbs add length and weaken sentences. The simple present tense is the strongest way to write.

Hidden verbs come in two forms. Some have endings such as *-ment*, *-tion*, *-sion*, and *-ance* or link with verbs such as *achieve*, *effect*, *give*, *have*, *make*, *reach*, and *take*.

Here are some examples of hidden verbs and how to make sentences clearer and stronger.

Don't write	But write
...make an application for...	...apply for...
...carry out a review of...	...review...
The inspector will carry out a review of the company's programs	The inspector will review the company's programs.
This plan assists in the management of	This plan manages . . .
To determine part life, make a calculation of the	To determine part life, calculate

The editing practices used in writing GACA documents are as follows:

- ‘Must’ indicates a mandatory requirement and you use it when writing GACARs.
- ‘Should’ is used to indicate a recommendation so use it when writing guidance material such as the eBooks or the advisory circulars.
- ‘May’ is used to indicate discretion by the Authority, the industry or the applicant, as appropriate.

Do not use phrases such as “where applicable”, “where appropriate”, “when necessary” or “where adequate” when using

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“**must**” as it creates confusion as to whether or not the standard applies.

Don't write	But write
Application of the ADS-C climb and descend procedure requires ongoing monitoring.	The air traffic service unit must monitor continuously the application of the ADS-C climb and descend procedure.
The pilot must be informed, <u>when appropriate</u> , what the vector is to accomplish and the limit of the vector must be specified.	The air traffic service unit must inform the pilot what the vector is to accomplish and the limit of the vector. Add a Note explaining when the above Recommended Practice may not be appropriate.

“May” means something is permitted but not required. If an obligation applies only under specified conditions, the Standard must contain subsidiary statements specifying precisely those conditions. For subsidiary statements verbs such as “may” and “need not” can be used.

[Examples:]

[Standard] Each State **must** establish, at aerodromes in its territory, such aeronautical meteorological stations as it determines to be necessary. An aeronautical meteorological station may be a separate station or may be combined with a synoptic station.

[Recommendation] *The notification to the aerodrome meteorological office of individual flights **should** contain the following information except that, in the case of scheduled flights, the requirement for some or all of this information **may** be waived by agreement between the aerodrome meteorological office and the operator:*

- a)
- b)

[Standard] The operator must ensure that pilots-in-command have available on board the aeroplane all the essential information concerning the search and rescue services in the area over which the aeroplane will be flown.

Note. — This information may be made available to the pilot by means of the operations manual or such other means as is considered appropriate.

7- Avoid Unnecessary qualifiers.

Unnecessary qualifiers add no additional meaning to a sentence. The classic example from everyday language is "very dead." Here's some examples we see in some writing:

Their claim was **totally** unrealistic

We are **completely** convinced

It is **definitely** worth explaining

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Work **in partnership** with

Additional requirements **needed** to provide a level of safety Maintain **successful** bilateral agreements

8- Be Consistent.

Don't use different words to say the same thing. Avoid variation for the sake of variation. Repeating the precise term might seem boring but readers, and interpreters will appreciate the consistency. In Regulations drafting, care is often taken to ensure consistency in the use of terms. If different terms are used readers may conclude that GACA intends for the terms to have different meanings.

9- Be Positive.

If the idea can be expressed either positively or negatively, express it positively.

Don't write	But write
A ground system which is not part of the normal control or guidance system	A ground system which is independent of the normal control or guidance system

When you write a sentence containing two negatives, they cancel each other out.

Avoid such double negatives wherever possible. They can be difficult to understand and to translate.

Don't write	But write
It is not impossible	It is possible

10- Use consistent grammatical structures

Use consistent grammatical structures so that parallel ideas look parallel.

Don't write	But write
Writing good standards requires you to plan carefully, write several drafts, and revision.	Writing good standards requires you to plan carefully, write several drafts, and revise your work.

11- Use Short, Simple Words.

Given a choice between a fancy word and a simple word, choose the simple word. Prefer the short word to the long word. Excess or elaborate words make your writing weaker. Here are some examples of excess words in our writing and plain alternatives:

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Excess words	Plain Alternatives
accordingly,	so
addressees	you
as a means of	to
as prescribed by	in, under
assist, assistance	aid, help
at a later date	later
at the present time	now
commence	begin, start
constitutes	forms, makes up
facilitate	help
for the purpose of	to, for
heretofore	until now
implement	start, carry out
in accordance with	under
in order to	to
in the event that	if
initiate	begin, start
obtain	get, gain
on a monthly basis	monthly
pertaining to	of, about
provide	give
related to	of
so as to	to
such that	so
should it appear that	if
with regard to	about

12- Write Short Sentences.

The more complex the sentence, the harder it is to understand. Divide long sentences into short sentences. State only one idea or requirement in each sentence. Remove unnecessary words. Your average sentence length should be 20 words or fewer. Use a list instead of running items together in a long sentence, and apply the 20-word rule to each item in the list. You rarely need a sentence over 40 words long.

It's easy for readers to get lost in run-on sentences. Vertical lists are quicker and easier for readers to follow and are an ideal way to explain a series of facts.

[Example]

Along with your letter of application, submit a statement of conformance certifying that you have met the requirements of Subpart O of part 21 and that the article meets the TSO in effect on the date of your application; one copy of the data the TSO requires; and a description of your quality control system.

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Or, presented as a list:

With your letter of application, send us the following:

- (1) A statement of conformance certifying that you have met the requirements of Subpart O of Part 21 and that the article meets the TSO in effect on the date of your application;
- (2) One copy of the data the TSO requires; and
- (3) A description of your quality control system.

If only one or two simple conditions must be met before a requirement applies, state the conditions first and then the requirement. If several complex conditions must be met before a requirement applies, state the requirement first and then state the conditions.

[Examples]

Simple conditions to be met	Standard: When rapidly changing meteorological conditions make it inadvisable to include a weather report in the ATIS, the ATIS message must indicate that.
Several complex conditions must be met before a requirement applies	Standard: An upper limit of a control areas must be established when: air traffic control service will not be provided above such upper limit; or the control area is situated below an upper control area, in which case the upper limit must coincide with the lower limit of the upper control area. When established, such upper limit must coincide with a VFR cruising level of the tables in Appendix 3 to Annex 2.

13- Write Short Paragraphs.

Each paragraph should address a single topic. Putting each topic in a separate paragraph makes your information easier to digest. If a paragraph is comprised of a complex process or series of requirements, consider breaking it down into steps.

14- Avoid dense text and complex instructions.

Dense text and complex instructions are clearer in “if-then” tables. Tables help your reader find what’s important to them and see relationships in a way they can’t grasp from dense text.

[Examples]

Compare the text and table versions of the following material:

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Text format without table:

We must receive your completed application form on or before the 15th day of the second month following the month you are reporting if you do not submit your application electronically or the 25th day of the second month following the month you are reporting if you submit your application electronically.

Same Text with Table:

We must receive your completed application form on or before the following dates:

If you submit your form...	[then] We must receive it not later than...
Electronically	the 25th day of the second month following the month you are reporting.
other than electronically	the 15th day of the second month following the month you are reporting

15- Use of Brackets.

Brackets are used in provisions to indicate acronyms when they first appear, such as General Authority of Civil Aviation Regulation (GACARs). When developing provisions, limit the use of brackets unless they are needed for mathematical expressions. Provisions that use mathematical expressions will use brackets as they are required in mathematics.

16- Use of the Forward Slash.

The forward slash is used frequently in English, but its meaning is not always clear. It is difficult to translate and it can lead to provisions that are not clear. It can mean either and it can mean both. If the forward slash can be avoided, then do so. Avoid the use of the phrase “and/or”.

17- Avoid Noun Clusters.

Groups of nouns clustered together are difficult to understand. three or more nouns “sandwiched” together. Noun sandwiches confuse and bore readers. Use prepositions and articles to clarify the relationship among the words.

Don't write	But write
Safety management systems voluntary reporting procedures development.	Development of voluntary reporting procedures in safety management systems.
“Drug testing and alcohol misuse prevention regulations.”	“Regulations about drug testing and preventing alcohol misuse.”

18- Use of Numbers and Symbols.

Write out numbers from zero to ten. Use Arabic numerals for numbers from 11 onwards. If a section of text contains numbers above and below ten, choose one form of expressing numbers, generally the numerical form. If a sentence begins with a number, write out the number or rewrite the sentence so that the number does not come first. Use a space to separate digits into groups of three.

19- Use gender-free language.

Avoid using “generic” pronouns such as “he”, “she” or “he/she”. Instead, be specific. If you mean pilot, write pilot. If you

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mean mechanic, write mechanic.

20- Use of digits.

Digits in GACAR provisions must be unambiguous as to the intended accuracy. This is equally important to those who will apply the requirements and to those who will do the oversight. Make it clear what accuracy is intended. This may sound obvious but consider the following.

If you write 3 % it can be correctly interpreted as anything from 2.5 to 3.4%. The concept of “significant digits” is helpful in understanding accuracy. If you write 3 % you have used one significant digit, which leads to the interpretation mentioned above. If you write 3.0 %, you have used two significant digits and the interpretation is limited to 2.95 – 3.04 %. If you write 3.00%, you have used three significant digits and the accuracy is increased accordingly.

If you write 200 or 5000, this may be considered as only having one significant digit, i.e., it is unclear how exact this number is and what was intended. If in a GACAR it is stated “not more than 20%”, this can be perceived by many as not allowing 20.0001% but is that the intention?

How can you make it clear how many significant digits, and thereby what accuracy, you have intended? There are in fact many ways to do this in addition to the use of decimals as given above.

The context may show the number of significant digits, i.e., 185 – 200 will be understood as having three significant digits. The use of tables also gives a clear indication of the intended accuracy. For example, if the first row of a table contains a range like 200 - 209 and the next 210 – 219, it is clear that three significant digits are intended. Another way is to specifically state the tolerance, e.g., 200 m +/- 1% or in absolute terms, e.g., 200 m +/- 2.

Be clear what accuracy is intended based on your opinion of what accuracy is reasonable for the intended application. Finally, you must make sure that the required accuracy is stated unless the context or other circumstances makes the accuracy obvious.

21- Use of more than one unit of measure.

When expressing digits in more than one unit for the same purpose, such as meters and feet or km/h and knots, keep these points in mind:

- Be as accurate as it is reasonable considering the intended use and the conditions below;
- If the conversion between units is to be used in an operational environment you must ensure that the respective units are operationally usable, e.g., feet/meters for visibility requirements or for altitudes/flight levels;
- Maintain the accuracy that is intended with the regulation (e.g., +/- 1 meter or +/- 3 ft);
- Be consistent within the document and if possible, also with other documents

22- Use of Singular vs. Plural.

Use the singular rather than the plural form. The singular includes the plural and is simpler and clearer.

Don't write	But write
Vehicle drivers must not cross red lights	A vehicle driver must not cross a red light

Singular words may apply to organizations, operators, service providers, persons or things as well as to one organization, operator, service provider, person or thing. It is better form and easier to draft a provision in the singular, unless the plural is exclusively intended or unless it is necessary to make it clear that something applies in the aggregate or to avoid the unintended implication that every person with specified qualifications is entitled to a grant or other benefit.

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23-Use of “Means” and “Includes”.

The basic distinction between these two terms is that “means” is exclusive while “include” is not. For example, if a definition says that “the term X means A, B and C” then X means only A, B and C, and nothing else. If the definition says that “the term X includes A, B and C” then X must include A, B and C but it may also include D or E.

24- Use of Abbreviations and Acronyms.

Limit initials, abbreviations, and acronyms. You can use a short form for the main topic of your document. For example, if the document is about the Coordinated Operational Approval Process, write it out the first time and in parenthesis type the abbreviation (COAP). Use the abbreviation throughout the document. Since that's what your document is about, it's unlikely to confuse your reader. But don't also use abbreviations for several other ideas in the same document. Either write out the full name or use a short form of the name (for example, call an Aviation Rulemaking Advisory Committee "the Committee," not ARAC) that will help your reader remember what you're talking about. If you use a term only a few times, write it out every time.

25- Use of quotation marks.

Use of quotation marks for direct quotations or to set off ordinary words used to mean something other than what they normally mean. Do not use quotation marks to enclose titles of chapters, sections, or paragraphs. Indent long quotes from both margins, without quotation marks.

26-Use of figures.

Figures such as charts, tables, and other illustrative material as examples to explain complex material. Mention or introduce every figure in the text before it occurs and place the figure close to the text that explains it. Try to limit figures to one page. For figures that extend to more than one page, repeat the name and figure number on each page. Make sure all figures have informative headings.

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CHAPTER 2. THE GENERAL AUTHORITY OF CIVIL AVIATION (GACA) HISTORY, ORGANIZATION, AND REGULATORY RESPONSIBILITIES

Section 1. History and Organization of the General Authority of Civil Aviation (GACA)

1.2.1.1. Early Aviation Regulatory Authority and Responsibilities.

A. History. The need for an aviation regulatory authority was recognized in 1953 when Royal Decree Number 17/2/22 /3481, dated June 8, 1953, was issued. In response to that decree, the Minister of Defense and the Aviation and Inspector General issued a directive to the President of Civil Aviation. The Ministerial Directive required that the Aviation Safety & Environmental Sustainability Department temporarily adopt the United States (U.S.) Federal Aviation Regulations (FARs) until such time as the Kingdom of Saudi Arabia's Civil Aviation Regulations could be formalized. The President of Civil Aviation was directed to enforce the directive. The President then issued a similar directive which mandated the use of the FAR's and internal guidance documents from the Federal Aviation Administration (FAA) until such time as the Kingdom of Saudi Arabia's (KSA) regulations and guidance material were implemented in March, 2016.

B. Directorate General of Civil Aviation (DGCA). A short while after the Royal Decree was issued in 1953, the DGCA, Saudi Arabian Airlines and the Meteorology Department separated from Royal Saudi Air Force. The DGCA continued as the responsible entity for the country's civil aviation business until 1977 when the official agency name was changed from DGCA to Presidency of Civil Aviation (PCA). In 2001, a new formal Ministerial directive was issued to the PCA directing that the agency formally adopts the U.S. FAA regulations as the aviation regulations of KSA.

C. 2005 Royal Decree. The Civil Aviation Law issued August 23, 2005, was enacted to establish the Sovereignty and Powers of the Kingdom in regard to all aviation matters including licensing, certification and air navigation. This law directs all Civil Aviation activities and operations within the territory of the KSA and it changed the agency name from PCA to General Authority of Civil Aviation (GACA).

1.2.1.3. Establishment of the General Authority of Civil Aviation (GACA).

A. GACA. During the period from 1953, when the Royal Decree was in force, until 2005, the world witnessed a rapid growth of air commerce, aviation technology, and an increasing public demand for air services. This growth caused the industry to reach unforeseen levels of complexity in both operations and air traffic. On August 23, 2005, a new Civil Aviation Law was enacted. Prior to that law the PCA regulated the aviation industry in the KSA using FAA rules and guidance material. The new law recognized that GACA could not efficiently or adequately fulfill its responsibilities using a foreign regulatory structure and guidance system that could not fully meet its needs as a regulatory agency. Although the GACA continued to use the regulatory structure of the FAA, it took positive steps to develop its own guidance and regulatory structure. This handbook is part of the structural redesign of both the regulations and guidance material used by the KSA.

B. GACA Established. The Council of Ministers Order No. 33, dated 1 1/2/1426H (22 March 2005), established

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GACA. The GACA includes a Board of Directors which is headed by the Chairman of the Board of Directors.

C. The Civil Aviation Law. Article 5 of the Civil Aviation Law stipulates that "The Authority shall be solely in charge of all civil aviation affairs in the Kingdom, including undertaking all telecommunications services related to aviation safety and air traffic regularity". Article 179 of the Civil Aviation Law stipulates that "The Board of Directors shall issue the Implementing Regulations and decisions necessary for the implementation of the provisions of this Law." To keep the operating Regulations relevant and appropriate to the development of civil aviation, the Chairman of the Board of Directors has delegated the GACA President the authority to approve these Regulations in accordance with Order No .T-41, dated 30/12/1429H (28 /12/2008 G). see Table 1.2.1.1 for the history of aviation in the KSA.

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Table 1.2.1.1. History of Aviation in the KSA

Year	Event	Agency Responsible for Civil Aviation	Regulations
1934	Debut of civil aviation in KSA-desert runway established near Jubail to support oil exploration activities.		
1945	US President Franklin Roosevelt presented a Douglas DC-3 airplane to King Abdul Aziz ibn Saud. It was quickly put in service to transport passengers and mail between Jeddah, Riyadh and Dhahran. Two other aircraft of the same model were added at a later stage.		
1946	Saudi Arabian Airlines was formed.		
1953	First Civil Aviation Rule issued by Royal Decree No. 17/2/22/3481	CAD	U.S. FARs
Pre 1953	Royal Saudi Air Force, Civil Aviation Department (CAD), Saudi Arabian Airlines and Meteorology Department were all one organization.	CAD	
1953	Directorate General of Civil Aviation (DGCA), Saudi Arabian Airlines and Meteorology Department separated from Royal Saudi Air force.	DGCA	U.S. FARs
1960	Saudi Arabian Airlines separated from DGCA.	DGCA	U.S. FARs
1966	Meteorology Department separated from DGCA.	DGCA	U.S. FARs
1977	Agency name changed from DGCA to Presidency of Civil Aviation PCA	PCA	U.S. FARs
1992	Directive issued from President of PCA to adopt U.S. FARs.	PCA	U.S. FARs
2001	Ministerial Directive Order No. 1/1/4/5202 dated 15/6/1422H formally directed PCA to adopt U.S. FARs.	PCA	U.S. FARs
2005	Agency name changed from PCA to GACA.		U.S. FARs
2005	Royal Decree M/44 dated 18/7/1426H formally enacts the Civil Aviation Law.	GACA	Civil Aviation Law & U.S. FARs
2008	GACA publishes a comprehensive set of civil aviation safety regulations (22 Sections) which are based on a combination of the U.S. FARs and ICAO Annexes.	GACA	Civil Aviation Law & GACA Regulations
2010	GACA begins the development of a complete set of Saudi Arabian Civil Aviation Regulations (GACARs)	GACA	Civil Aviation Law & GACA Regulations
2015	GACA publishes a comprehensive set of civil aviation safety regulations — the new GACARs are born.	GACA	Civil Aviation Law & the New GACAR
2016	On March 1 st , 2016 the GACARs came into force	GACA	GACARs

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1.2.1.5. Organizational Structures of the GACA Aviation Safety & Environmental Sustainability Sector.

The first year of the newly formed independent GACA was 2005. The GACA organizational structure has experienced several changes since that time. The GACA organization is composed of several Sectors (see Figure 1.2.1.6) each carrying out specific functions and duties.

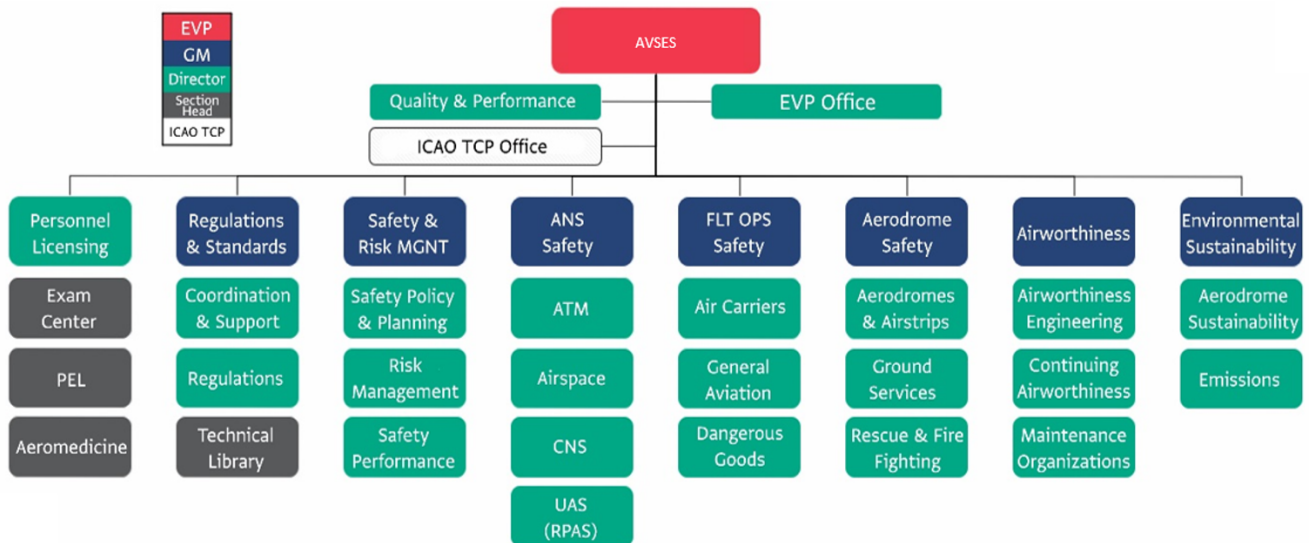
The AVSES Sector is responsible for regulating civil aviation activities within the Kingdom of Saudi Arabia. The current organizational structure for the AVSES sector (see Figure 1.2.1.5) (formerly Safety, Security and Air Transport) contains four different levels as follows:

- 1) Level 1: The Executive Vice President – AVSES sector.
- 2) Level 2: The operational directorate headed by a General Manager.
- 3) Level 3: The operational divisions headed by directors. Each operational division (and its associated work units or offices) reports to one of the main departments of AVSES, as described in other GACA documentation.
- 4) Level 4: Sections which are headed by Section Heads who report to one of the main operational divisions.

NOTE: The GACA eBook will only address subjects that are applicable to the aviation safety functions in the AVSES Sector.

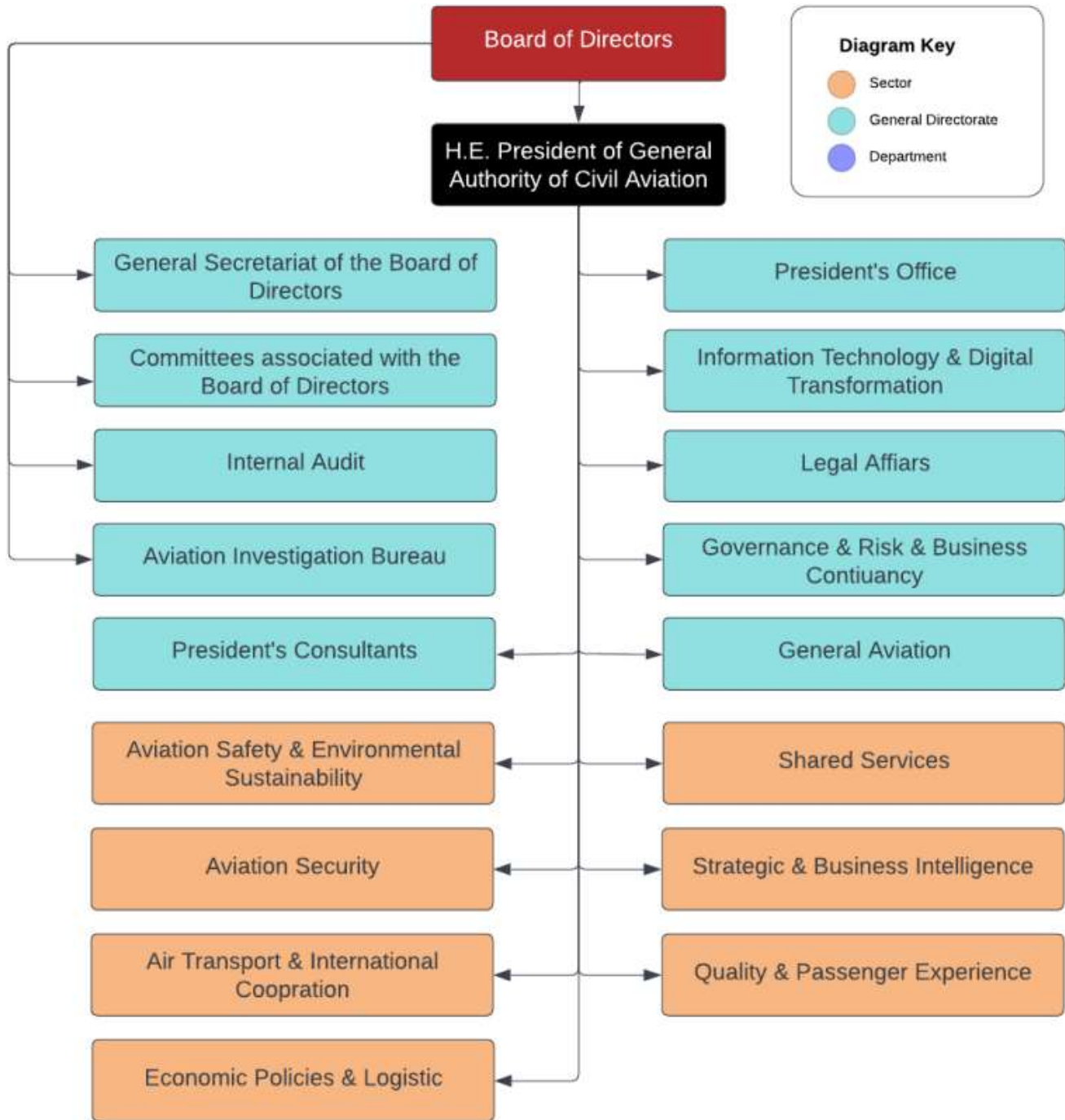
The diagram below depicts the organizational structure of the GACA Aviation Safety & Environmental Sustainability Sector.

Figure 1.2.1.5 - Organizational structure of the GACA Aviation Safety & Environmental Sustainability Sector.



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Figure 1.2.1.6 - Organizational structure of the General Authority of Civil Aviation (GACA).



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CHAPTER 2. THE GENERAL AUTHORITY OF CIVIL AVIATION (GACA) HISTORY, ORGANIZATION, AND REGULATORY RESPONSIBILITIES

Section 2. The Aviation Safety Legislative Framework for Civil Aviation in KSA

1.2.2.1. The Legislative Framework for Civil Aviation in the KSA.

The legislative framework governing the civil aviation system in Saudi Arabia is the Civil Aviation Law, which was promulgated by Royal Decree No. M/44 18/07/1426H (23 August 2005). Pursuant to Article 180 of the Act, after publication in the Um Al Qura (Official Gazette) Issue No. 4068 on 25/09/1426H (28 October 2005), it became applicable on 26/03/1427H (24 April 2006) (one hundred and eighty days after its publication date) and repeals all provisions conflicting therewith.

As prescribed under Article 178 of the Civil Aviation Law, ("Repeal of Civil Aviation Laws"), once it entered into force, it repealed the Law of Landing and Passage of Foreign Military and Governmental Aircraft, and Diplomatic Aircraft within the Territory of the Kingdom of Saudi Arabia and Exemption From Duties, issued by Royal Decree No. 7/7/15/2559, dated 1/4/1372H; the Law of Aerodromes Establishment Inside the Kingdom of Saudi Arabia, issued by Royal Decree No. 7/7/1/3456 in the month of Ramadan of the year 1372H; and the Aviation Law, issued by Royal Decree No. 17/2/22/3481, dated 24/9/1372H.

A. As prescribed under Article 178 of the Civil Aviation Law, ("Repeal of Civil Aviation Laws"), once it entered into force, it repealed the *Law of Landing and Passage of Foreign Military and Governmental Aircraft, and Diplomatic Aircraft within the Territory of the Kingdom of Saudi Arabia and Exemption From Duties*, issued by Royal Decree No. 7/7/15/2559, dated 1/4/1372H; the *Law of Aerodromes Establishment Inside the Kingdom of Saudi Arabia*, issued by Royal Decree No. 7/7/1/3456 in the month of Ramadan of the year 1372H; and the *Aviation Law*, issued by Royal Decree No. 17/2/22/3481, dated 24/9/1372H.

1.2.2.3. The Civil Aviation Law.

A. The Civil Aviation Law. This law contains 14 Chapters, stipulating 180 Articles:

1) Chapter One: General Provisions:

- Section One: Definitions
- Section Two: Sovereignty and Powers of the Kingdom
- Section Three: General Provisions on Aviation

2) Chapter Two: Air Carriage Regulation:

- Section One: Policies and Implementation

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- Section Two: Licensing and Operating Aviation Companies

- Section Three: Air Transportation Facilitation

3) *Chapter Three: Aerodromes and Navigational Services Facilities:*

- Section One: Establishment, Management and Use of Aerodromes

- Section Two: Aerial Easement

- Section Three: Protection of Aerodromes, Aircraft and Navigation Equipment

4) *Chapter Four: Aircraft:*

- Section One: Aircraft Registration

- Section Two: Rights on Aircraft

- Section Three: Attachment of Aircraft

- Section Four: Airworthiness of Aircraft

- Section Five: Operation Specifications

5) *Chapter Five: Airspace Rule*

6) *Chapter Six: Flying Permits and Training*

7) *Chapter Seven: Air Carriage and Aerial Work Operations:*

- Section One: Applicable Rules and Instructions

- Section Two: Air Operations

8) *Chapter Eight: Aviation Accidents*

9) *Chapter Nine: Search and Rescue*

10) *Chapter Ten: Aircraft Operation Liabilities and Guarantees:*

- Section One: Air Carrier's Liability

- Section Two: Liability for Damage

11) *Chapter Eleven: Crimes and Acts Against Safety and Security of Civil Aviation:*

- Section One: Definition of Crimes and Acts

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- Section Two: Jurisdiction and Duties of Authorities

12) *Chapter Twelve: Penalties and Punishments*

13) *Chapter Thirteen: Military Aircraft*

14) *Chapter Fourteen: Concluding Provisions*

1.2.2.3.1. The Process for Amendment of the Civil Aviation Law:

A. The proposed amendment is submitted to the General Authority of Civil Aviation (GACA) Board of Directors for approval.

B. Once approved by the Board, a draft of the amendment is presented to His Majesty the King and is directed to the General Secretariat of the Council of Ministers (GSCM).

C. The GSCM processes the proposed amendment as follows:

- 1) It is sent to the Council of Experts for review and coordination with all concerned parties.
- 2) It is then sent to the Shura Council where a specialized committee is formed to review the proposed amendment, and who then forwards it back to the Shura Council for discussion, voting and approval.
- 3) Once approved by the Shura Council, it is included in the Council of Ministers agenda for review and approval.
- 4) Once approved by the Council of Ministers, a Royal Decree is issued approving the Council of Ministers Resolution.

NOTE: The above process may take up to two years to complete.

1.2.2.5. Enforcement and Empowerment of Inspectors.

A. The provisions pertaining to enforcement and empowerment of inspectors are dealt with in the following Chapters and Articles:

- 1) Chapter Eleven - Crimes and Acts against Safety and Security of Civil Aviation.
- 2) Chapter Twelve - Penalties and Punishments.
- 3) Article 6 - Inspection and preventing aircraft from flying and seizing the documents thereof.
- 4) Articles 17 and 100 related to inspection of operations of companies and agencies.

B. The Civil Aviation Law, Article 6, provides for the inspection and prevention of aircraft from flying and the seizure of documents thereof without prejudice to provisions of other laws and international treaties.

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1.2.2.7 GACA Aviation Safety Implementing Regulations

A. The GACA Aviation Safety Regulations (GACARs) constitute the GACA implementing regulations for aviation safety in the Kingdom of Saudi Arabia (KSA). The GACARs are issued under the authority of the KSA Civil Aviation Law. The GACARs apply to all civil aviation activities in KSA. The GACARs are promulgated on the GACA official website <https://gaca.gov.sa/>. The GACARs rulemaking procedures are stipulated in GACAR Part-11 with the detailed policies and procedures in the GACA eBook Volume-1, Chapter-2, Section-10.

B. GACA Regulatory Circulars. Whenever deemed required, the President may issue a GACA Regulatory Circular. Regulatory Circulars have the same regulatory powers as the GACARs. All GACA Regulatory Circulars are published on the GACA website. In addition, GACA Regulatory Circulars relating to Aviation Standards are also published on the GACA Aviation Standards webpage.

C. Complementing policies, procedure, guidance, and advisory publications. The GACARs are complemented with the following publications that are promulgated on the GACA official website <https://gaca.gov.sa/>:

- 1) GACAR Implementing Policies, Processes, and Procedures, referred to hereinafter as the (eBooks) which contains mandatory policy and procedures guidance for the Aviation Standards inspectors, engineers, and specialists. It also, provides the required information to all regulated entities under the GACA Aviation Safety Regulations (GACARs) on the GACARs implementation policies, processes, and procedures that are applied to those entities by GACA Inspectors, engineers, and specialists. Policies and procedures for the development/amendment of the GACA EBOOKs are contained in Volume-1, Chapter-1, Section-1 of the eBook.
- 2) GACA Advisory Circulars (GACA-AC) which provide additional information and guidance for compliance with the GACARs. They define acceptable means, but not the only means, of accomplishing or showing compliance with the GACARs. Generally informative in nature, GACA Advisory Circulars are neither binding nor regulatory. Policies and procedures for the development/amendment of the GACA Advisory Circulars are contained in Volume-1, Chapter-2, Section-11 of the GACA eBook.
- 3) GACA Safety Bulletins (GACA-SB) which contain important safety information and may include recommended actions. Besides the specific action recommended in a GACA-SB, an alternative action may be as effective in addressing the safety issue named in the GACA-SB. The contents of a GACA-SB do not have the force and effect of the GACA Aviation Safety Regulations and are not meant to bind the public in any way. A GACA-SB is intended only to provide clarity to the public regarding existing requirements under the GACA Aviation Safety Regulations. Policies and procedures for the development/amendment of the GACA Safety Bulletins are contained in Volume-1, Chapter-2, Section-12 of the GACA eBook.

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Section 3. Safety Responsibilities of the State

1.2.3.1. General. As part of its obligations as a signatory to the Convention on International Civil Aviation, the Kingdom of Saudi Arabia (KSA) has put in place a State Safety Program (SSP).

To manage the safety of civil aviation in a structured and coherent manner. The State Safety Program of the KSA includes the following key components:

- Safety Policies and Objectives
- Safety Risk Management
- Safety Assurance
- Safety Promotion

A. The SSP of the Kingdom of Saudi Arabia recognizes that many persons and organizations contribute to aviation safety, and each has duties and obligations that must be fulfilled in order for an acceptable level of safety to be maintained.

B. The SSP recognizes the safety responsibilities of several distinct participants in civil aviation. These include the following:

- The General Authority of Civil Aviation (GACA) Aviation Safety & Environmental Sustainability (AVSES).
- National Transport Safety Center (NTSC)
- The General Authority of Civil Aviation (GACA) service provider sectors (including the Air Navigation Services Sector and the Airports Sector).
- Private sector individuals and organizations who participate in civil aviation activities whether for commercial or non-commercial reasons.

1.2.3.3. The General Authority of Civil Aviation (GACA) Aviation Safety & Environmental Sustainability (AVSES) Safety Responsibilities.

A. GACA AVSES. As the State safety regulator, GACA AVSES Sector has safety related responsibilities involving all

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sectors and activities associated with civil aviation in the KSA. Specifically, the AVSES Sector has regulation responsibilities include the following areas:

- Aircraft
- Airmen
- Airspace
- Air Operations including recreational aviation and aerial work
- Aviation Schools and Training Centers
- Maintenance Providers
- Aerodromes
- Air Navigation Services (ANS)
- Aeronautical Parts Manufacturers
- Persons engaged in the transportation of goods by air

B. The GACA’s regulatory authority to prescribe, revise, and enforce safety standards is part of the duties and responsibilities that have been assigned to the Authority under the provisions of the Civil Aviation Law.

C. General rulemaking procedures followed by the GACA are explained in GACAR Part 11, and Chapter 02, Section 10 of this handbook; however, the President is the final authority with respect to all aviation safety rulemaking actions.

1.2.3.5. National Transport Safety Center (NTSC). The NTSC has been given the powers and duties concerning aviation serious occurrence investigations, formulating causes of aviation occurrences, and making aviation safety recommendations. Although GACA personnel may participate in aviation occurrence investigations conducted by the NTSC upon the discretion of the Investigator in Charge (IIC), they are not permitted to participate in determining the “causes” of any aviation occurrence investigated by the NTSC. At the request of the NTSC, certain aviation accidents may be investigated by the GACA. The facts, conditions, and circumstances of these occurrences are reported to the NTSC, and the NTSC determines “the causes.” Based on investigation findings, the NTSC recommends changes in aviation regulations, procedures, and equipment to improve aviation safety.

1.2.3.7 Coordination between the NTSC and the GACA AVSES Sector.

A. Observer from the Safety and Risk Management Department of the GACA AVSES Sector. In accordance with Article 3.3 D) of the NTSC Regulations, for all aviation occurrence investigations conducted by the NTSC, an Observer from the Safety and Risk Management Directorate of GACA AVSES may be invited to assist in the investigation upon the discretion of the Investigator in Charge (IIC).

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B. Flight Recorders. In accordance with Article 3.3 J) of the NTSC Regulations, the AVSES may retrieve flight recorders for the sole purpose of conducting safety oversight of operators registered in the Kingdom of Saudi Arabia. The AVSES may not retrieve flight recorders from an aircraft involved into an aviation occurrence being investigated by the NTSC.

C. State Safety Program (SSP). In accordance with Article 8.5 of the NTSC Regulations, the SSP is mainly the responsibility of the AVSES. The role of the NTSC with respect to the SSP will be to provide the AVSES with the required data.

1.2.3.9. The General Authority of Civil Aviation (GACA) Service Provider Safety Responsibilities. The GACA Service Provider Sectors (Air Navigation Sector and Airports Sector) are operating entities wholly independent of the AVSES. They have safety related responsibilities the same way as the private sector responsibilities as outlined in the following paragraph.

1.2.3.11. Private Sector Safety Responsibilities.

A. Private Sector. The term “private sector,” when applied to aviation, encompasses all individuals and commercial organizations participating in civil aviation activities. While individuals and organizations such as pilots, mechanics, air carriers, aerodromes, air agencies and air navigation service providers participate directly in civil aviation activities, other individuals and organizations such as vendors, food caterers, travel agents, baggage handlers, and aircraft sales personnel participate indirectly.

B. GACA AVSES Sector. The GACA AVSES Sector has the duty to establish and enforce minimum standards, rules, and national policies in order to promote a high level of aviation safety and to meet the Kingdom of Saudi Arabia’s international obligations as an ICAO Contracting State. The responsibility for aviation safety, however, does not rest entirely with the GACA. Persons or organizations of the “private sector” are also obligated to comply with the prescribed safety requirements and to provide for public safety. All airmen, aircraft owners and operators, aerodromes, air agencies, and air navigation service providers who qualify for and accept a GACA certificate or authorization, must assume these “private sector” responsibilities.

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Section 4. ICAO Overview

1.2.4.1. General.

A. This chapter is an overview of the International Civil Aviation Organization (ICAO), including its objectives, responsibilities, and influence on international civil aviation. Additional information on this organization may be found in Volume 5, Chapter 1, as it relates specifically to air navigation.

B. The requirements to comply with international aviation rules are not always apparent. For example, operators conducting flights between the Kingdom of Saudi Arabia (KSA) and Oman and helicopter operators going to or from offshore helicopter platforms in international waters must comply with international aviation rules. Therefore, aviation safety inspectors (Inspectors) responsible for operators involved in international activity must be familiar with the content and details of ICAO Standards and Recommended Practices.

1.2.4.3. The Chicago Convention.

A. The Convention on International Civil Aviation, also known as the Chicago Convention, was signed at Chicago on 7 December 1944 and came into force on 4 April 1947. The Chicago Convention superseded the Conventions relating to the Regulation of Aerial Navigation (or Paris Convention) signed at Paris on 13 October 1919 and the Pan American Convention on Commercial Aviation (or Havana Convention), signed at Havana on 20 February 1928. It contained the basic principles and arrangements in order that international civil aviation could be developed in a safe and orderly manner, and that international air transport services would be established on the basis of equality of opportunity and operated soundly and economically. The Chicago Convention also established the ICAO.

B. Article 37 of the Chicago Convention requested that, in implementing the international standards and recommended practices and procedures adopted by ICAO, each Contracting State would undertake to collaborate in securing the highest practicable degree of uniformity in regulations, standards, procedures, and organization in relation to aircraft, personnel, airways and auxiliary services in all matters in which such uniformity will facilitate and improve air navigation.

1.2.4.5. Kingdom Of Saudi Arabia (KSA) Participation.

The Kingdom of Saudi Arabia signed on to the convention on 19 February 1962. As a very active member of ICAO, the KSA fully supports the organization's goals. Through ICAO, the KSA works to achieve the highest practical, uniform air regulations, standards, and procedures for aircraft, personnel, airways, and aviation services throughout the world. At the same time, the KSA also depends upon ICAO to ensure that navigation facilities, aerodromes, meteorological services, and aeronautical telecommunication services provided by other nations meet international standards.

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Section 5. ICAO Objectives

1.2.5.1. ICAO Objectives.

The objectives of the International Civil Aviation Organization (ICAO) are to develop the principles and techniques of international air navigation and to foster the continued development of international air transportation in the following ways:

- Promote safe and orderly growth of civil aviation throughout the world
- Foster the technical arts of aircraft design and operation for peaceful purposes
- Encourage the development of airways, airports, and air navigation facilities for international civil aviation
- Meet the needs of the people of the world for safe, regular, efficient, and economical air transportation
- Prevent economic waste caused by unreasonable competition
- Ensure that the rights of contracting states are fully respected and that every contracting state has an equal opportunity to operate international airlines
- Avoid discrimination among contracting states
- Promote the development of all aspects of international civil aeronautics

1.2.5.3. Obligations of ICAO Member States.

Ratifying the Convention obligated governments (States) to abide by “certain principles and arrangements in order that international civil aviation may be developed in a safe and orderly manner and that international air transport services may be established on the basis of equality of opportunity and operated soundly and economically.” Ninety-six articles, created and accepted at the Chicago Convention, established the privileges and obligations of member states. Some of these articles are summarized as follows:

A. Contracting states recognize that each state has complete and exclusive sovereignty over the airspace above its territory (Article 1).

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- B.** The Convention, including the articles and annexes, applies only to civil aircraft, and each state will require their state aircraft to operate with “due regard” for the safety of navigation of civil aircraft (Article 3).
- C.** International air navigation laws and regulations of a contracting state relating to the operation and navigation of such aircraft while within its territory, shall apply to the aircraft of all contracting states without distinction to nationality. These laws and regulations shall be complied with by such aircraft while entering, within, or departing from the territory of that state (Article 11).
- D.** Each contracting state undertakes to adopt measures to ensure that every aircraft maneuvering over or within its territory, and every aircraft carrying its nationality mark, wherever it operates, shall comply with the rules and regulations of that country relating to the flight and maneuver of aircraft. This article also requires that over the high seas, the rules in force shall be those established under this convention. Each contracting state undertakes to ensure the prosecution of all persons violating the applicable regulations (Article 12).
- E.** Each contracting state undertakes not to discriminate in the availability of, or charges for, airports and other air navigation facilities (Article 15).
- F.** Each contracting state undertakes to provide in its territory, airports, radio services, meteorological services, and other air navigation facilities to facilitate international air navigation, in accordance with the standards and practices of ICAO (Article 22).
- G.** Contracting states undertake to adopt and put into operation appropriate standard systems of communication procedures, codes, markings, signals, lighting, and other operational practices and rules recommended or established by ICAO (Article 28).
- H.** Contracting states recognize the validity of Certificates of Airworthiness and Licenses of Competency issued by other contracting states, when issued under conditions which comply with ICAO Standards (Article 33).
- I.** Contracting states should collaborate in securing the highest practicable degree of uniformity in regulations, standards, procedures, and organization in relation to aircraft, personnel, airways, and auxiliary services in all matters when uniformity will facilitate and improve air navigation (Article 37).
- J.** Each contracting state undertakes to immediately notify ICAO of any differences between national regulations and any ICAO Standards (Article 38).

1.2.5.5. Organizational Structure ICAO

Is recognized by the United Nations as a specialized agency for international civil aviation. An agreement between these organizations is designed to ensure an efficient working relationship and a mutual recognition of their respective roles. ICAO is not subordinate to, and does not receive any line-of-command authority from, the United Nations.

A. Assembly. The Assembly is the sovereign body of ICAO. It meets every 3 years for a detailed review of the organization’s technical, economic, legal, and technical assistance programs, and offers guidance concerning the future work of other ICAO bodies. Each nation has one vote in the assembly and, unless the convention provides otherwise, a

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majority rules. In 2007, there were 190 ICAO member nations and, therefore, 190 assembly votes.

B. Council. The Council is composed of elected representatives from 33 member states. It investigates situations that might create obstacles to international air navigation, and takes action as necessary to protect global air safety and order. When required, it also serves as an arbiter between member states on aviation matters.

C. Air Navigation Commission. The Air Navigation Commission is composed of 15 individuals; each considered an expert in a technical field of aviation. This group is concerned with the development of ICAO Standards and Recommended Practices.

D. Air Transport Committee. The Air Transport Committee's prime concern is for economic matters relating to airports, route facilities, and air carrier tariffs. This information is used to promote fair and equal opportunities for all international carriers.

E. Joint Support Committee. The Joint Support Committee provides for financial arrangements for certain air facilities or services when member states have inadequate resources. Most funding comes from direct user charges to air carriers. This committee studies air service problems and makes suitable arrangements between user and provider states.

F. Legal Committee. The Legal Committee interprets questions on the Chicago Convention and public and private law. Some of its main concerns include hijackings and other acts of air terrorism, air carrier liability, and jurisdiction over offenses on international flights.

G. Unlawful Interference with International Civil Aviation. The Committee on Unlawful Interference with International Civil Aviation and its Facilities assists and advises the council on all activities relating to aviation security.

H. Secretariat. The Secretariat headed by a council appointed Secretary General provides for ICAO's daily administrative needs. The most demanding job is its foreign language service. Other areas include the preparation of documentation for meetings and special studies.

1.2.5.7. ICAO Publications

A. The ICAO Bulletin. This document is published 12 times annually and contains a digest of ICAO meetings and activities for the previous period. Semiannually, it contains a table showing the status of all ICAO publications involving air navigation.

B. Final Reports of Meetings. The final reports of divisional, regional and panel meetings include the proceedings and recommendations of each meeting. These recommendations are not effective until reviewed by the Air Navigation Commission or another appropriate committee, and approved by the Council. Approved recommendations are separately referred to the affected states for implementation.

C. Annexes to the Convention. Standards and Recommended Practices of ICAO are designated as "Annexes" to the Convention and are published separately for each technical field after adoption by the Council.

D. Procedures for Air Navigation Services (PANS). The uniform application of certain operating procedures is necessary for safe and efficient air navigation. Operating procedures covering aircraft operations, construction of visual and instrument flight procedures, ICAO abbreviations and codes, rules of the air, and air traffic services have been adopted by

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ICAO. They are kept up to date by action at divisional and panel meetings. Some of these procedures, services, and rules are requirements that have been incorporated in the Annexes. Additional requirements will become a part of the Annexes as they mature.

The PANS are composed of the following documents:

- Doc 4444 Air Traffic Management
- Doc 8168 Aircraft Operations
- Doc 8400 ICAO Abbreviations and Codes
- Doc 9981 Aerodromes
- Doc 9868 Training
- Doc 10066 Aeronautical Information Management
- Doc 10199 Air Navigation Services — Information Management (PANS-IM)

Table of PANS accountability:

PANS	Document identification	Responsible department
Air Traffic Management	Doc 4444	ANS
Aircraft Operations	Doc 8168	OPS
ICAO Abbreviations and Codes	Doc 8400	ALL
Aerodromes	Doc 9981	AGA
Training	Doc 9868	PEL
Aeronautical Information Management	Doc 10066	ANS
Air Navigation Services — Information Management (PANS-IM)	Doc 10199	ANS

E. Supplementary Procedures. Certain procedures apply only in specific regions and those are published as Supplementary Procedures. A Supplementary Procedure can explain and amplify, but cannot conflict with international standards. For convenience, all Regional Supplementary Procedures have been included in a single document and similar procedures applicable to two or more regions are grouped together.

The SUPPS is composed of the Regional Supplementary Procedures (Doc 7030).

Table of SUPPS accountability:

SUPPS	Document identification	Responsible department
Regional Supplementary Procedures	Doc 7030	ANS

F. Field Manuals. These manuals have no formal status by themselves but derive their status from the International Standards, Recommended Practices, and PANS from which they are compiled. They are prepared primarily for the use of personnel engaged in operations in the field. The most extensive manual is on training.

G. ICAO Circulars. ICAO Circulars are issued by the Secretary General to make specialized information available to contracting states. They are not adopted or approved by the Council. They include studies of statistics, summaries of

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treaties or agreements, analyses of technical documents, and studies of technical subjects.

H. Publications. The publications discussed in this paragraph and other publications published and distributed by ICAO are available at the following address:

Public Information Office
International Civil Aviation Organization
1000 Sherbrooke Street West, Suite 400
Montreal, Quebec Canada H3A 2R2

1.2.5.9. Annexes to the Convention.

A. Since ICAO was created, a main technical feature of the organization has been the achievement of standardization in the operation of safe, regular, and efficient air services. This has resulted in high levels of reliability in the many areas that collectively shape international civil aviation, particularly with respect to aircraft, the crews that operate them, and the ground-based facilities and services.

B. Standardization has been achieved through the creation, adoption, and amendment of Annexes to the Convention on International Civil Aviation, identified as International Standards and Recommended Practices. Standards are directives which ICAO members agree to follow. If a member has a standard different from an ICAO Standard, that member must notify ICAO of the difference. Recommended Practices are desirable practices but not essential. The basic criterion for deciding whether a particular issue should be a Standard is an affirmative answer to the question, “Is uniform application by all contracting States essential?” The applicability of a Standard may be subject to certain conditions relating to such areas as terrain, traffic density, stages of flight, and climate. A Standard should, however, be applied equally by any contracting state where those specified conditions are encountered, unless the contracting state notifies ICAO of a difference.

C. ICAO Annexes contain the Standards and Recommended Practices that have been adopted through international agreement. The 19 Annexes are described as follows:

1) *Annex 1, Personnel Licensing, provides information on licensing of flight crews, air traffic controllers, and aircraft maintenance personnel.*

2) Annex 2, Rules of the Air, contains rules relating to conducting visual and instrument flight.

3) Annex 3, Meteorological Service for International Air Navigation, provides for meteorological services for international air navigation and reporting of meteorological observations from aircraft.

4) Annex 4, Aeronautical Charts, contains specifications for aeronautical charts used in international aviation.

5) Annex 5, Measurement Units Used in Air and Ground Operations, lists dimensional systems to be used in air and ground operations.

6) Annex 6, Operation of Aircraft, enumerates specifications which ensure a level of safety above a prescribed minimum in similar operations throughout the world. The three parts of this Annex are as follows:

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- Part I—International Commercial Air Transport-Airplanes
- Part II—International General Aviation-Airplanes
- Part III—International Operations-Helicopters

7) Annex 7, Aircraft Nationality and Registration Marks, specifies requirements for registration and identification of aircraft.

8) Annex 8, Airworthiness of Aircraft, specifies uniform procedures for certification and inspection of aircraft.

9) Annex 9, Facilitation, provides for simplification of border-crossing formalities.

10) Annex 10, Aeronautical Telecommunications, the volumes provides for:

- Volume I — Radio Navigation Aids
- Volume II — Communication Procedures including those with PANS Status
- Volume III — Communication Systems
- Volume IV — Surveillance and Collision Avoidance Systems
- Volume V — Aeronautical Radio Frequency Spectrum Utilization

11) Annex 11, Air Traffic Services, includes information on establishing and operating air traffic control, flight information, and alerting services.

12) Annex 12, Search and Rescue, provides information on organization and operation of facilities and services necessary for search and rescue.

13) Annex 13, Aircraft Accident Investigation, provides for uniformity in notification, investigation, and reporting on aircraft accidents.

14) Annex 14, Aerodromes, contains:

- Volume I — Aerodrome Design and Operations
- Volume II — Heliports

15) Annex 15, Aeronautical Information Services, includes methods for collecting and disseminating aeronautical information required for flight operations.

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16) Annex 16, Environmental Protection, contains:

- Volume I - Aircraft Noise
- Volume II - Aircraft Engine Emissions
- Volume III - Aeroplane CO2 Emissions
- Volume IV - Carbon Offsetting and Reduction Scheme for International Aviation (CORSIA)

17) Annex 17, Security-Safeguarding International Civil Aviation Against Acts of Unlawful Interference, specifies methods for safeguarding international civil aviation against unlawful acts of interference.

18) Annex 18, The Safe Transport of Dangerous Goods by Air, contains specifications for labeling, packing, and shipping dangerous cargo.

19) Annex 19, Safety Management.

1.2.5.11. ICAO Standards versus ICAO Recommended Practices.

A. As stated in paragraph 10.1.2.9 above, ICAO Annexes contain “Standards” and “Recommended Practices.” However, within the context of ICAO Annex’s 6, 8 & 18, and consistent with Kingdom of Saudi Arabia (KSA) international obligations found in Article 33 of the Chicago convention, only “Standards” can be enforced pursuant to General Authority of Civil Aviation Regulation (GACAR) § 129.3(d). The Annex makes it clear that “Recommended Practices” are desirable objectives to which States should endeavor (but are not required) to conform, while “Standards” are necessary and considered mandatory or required in the interest of safety. Standards are recognized as “necessary” for the safety of international air navigation to which States must conform.

B. International law also makes it clear that the KSA may only require foreign operators to meet the ICAO “Standards,” not the “Recommended Practices” of ICAO.

C. Inspector having surveillance responsibilities for GACAR Part 129 operators should ensure compliance with ICAO Standards rather than with the Recommended Practices. The Recommended Practices are identified within each ICAO Annex.

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Section 6. ICAO Regional Plans and Aeronautical Information Publications

1.2.6.1. Regional Planning - Supplementary Procedures (SUPPS).

A. Although the International Civil Aviation Organization (ICAO) is basically involved with civil aviation on a worldwide scale, there are many subjects it considers on a regional basis. Regional air navigation meetings are held periodically to consider the requirements of air operations in specified areas. Facilities and services and the formulation of supplementary procedures necessary to support increases in traffic density, new air routes, and the introduction of new types of aircraft are considered.

B. These meetings result in the identification of the numerous facilities and services to be provided by States in the nine regions of ICAO. After review of the meeting recommendations by the Air Navigation Commission and approval by the Council, they are presented in Air Navigation Plan publications covering the nine regions.

1.2.6.3. Air Navigation Plans.

Air Navigation Plans provide details of facilities, services, and procedures required for international air navigation within specified areas. Each Air Navigation Plan also contains recommendations for the provision of air navigation facilities and services within a specific area. Affected governments can be assured that if the recommended facilities and services are furnished in accordance with the plan, they will form, with those furnished by other states, an integrated air navigation system adequate for the foreseeable future. The plans are amended periodically to reflect changes in requirements and in the status of the implementation of the facilities and services.

1.2.6.5. Aeronautical Information Publications (AIP).

Each state is responsible for developing an AIP which is intended to satisfy international requirements for the exchange of aeronautical information essential to air navigation. Each AIP contains information on air traffic, aerodromes, navigational aids (NAVAIDs), special use airspace, meteorological services, and other data vital to flight crews coming into or flying through the airspace of a particular state. Each AIP should provide information which is adequate, accurate, and timely, and when practical, designed for use in flight. AIPs contain lists of significant differences between the national regulations and practices of the state, and the standards, recommended practices, and procedures of ICAO. Notices to Airmen (NOTAMs) are issued when information is temporary or cannot be made available quickly enough by an AIP amendment.

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Section 7. Management of ICAO State Letters

1.2.7.1. General.

A. Within the General Authority of Civil Aviation (GACA), the International Cooperation Department within the Air Transport & Economic Regulations Sector is vested with the responsibility of monitoring, tracking, and handling of the ICAO State Letters with the other GACA sectors.

B. This section stipulates the internal policies, processes, and procedure adopted by the Aviation Safety & Environmental Sustainability sector for the internal handling of ICAO State Letters that are either received from the GACA International Cooperation Department, or via the sector's continuous monitoring and tracking of the ICAO State Letter's portal.

C. ICAO communicates to the Member States through the State Letters, via an electronic distribution system. Proposals to amend an ICAO Annex are notified by an ICAO State Letter. Most of these letters invite comments from States on proposed amendments to SARPs in the Annexes. GACA Aviation Safety & Environmental Sustainability is responsible for formulating the required responses to the State Letters that are related to the duties and responsibilities of the Aviation Safety & Environmental Sustainability Sector.

D. States are required to adopt ICAO SARPs into national regulations. However, where it is impracticable to adopt SARPs, a State must file a difference to ICAO in accordance with Article 38 of the Chicago Convention. In this regard, adoption of SARPs and filing of differences is an important task of GACA Aviation Safety & Environmental Sustainability.

1.2.7.3. Definitions.

For the purposes of this section, the following definition applies:

National Continuous Monitoring Coordinator (NCMC): The person(s) nominated by the President to act as primary point of contact for all USOAP CMA processes and activities.

1.2.7.5 . GACA Sectors and Related Annexes.

Table 1.2.7.5.1 below shows the ICAO Annexes and the concerned GACA sector vested with the responsibilities of handling related ICAO State Letters.

Table 1.2.7.5.1

ICAO Annex	GACA Sector
1. Personnel Licensing	Aviation Safety & Environmental Sustainability
2. Rules of the Air	Aviation Safety & Environmental Sustainability

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3. Meteorological Service for International Air Navigation	Aviation Safety & Environmental Sustainability
4. Aeronautical Charts	Aviation Safety & Environmental Sustainability
5. Units of Measurement to be Used in Air and Ground Operations	Aviation Safety & Environmental Sustainability
6. Operation of Aircraft	Aviation Safety & Environmental Sustainability
7. Aircraft Nationality and Registration Marks	Aviation Safety & Environmental Sustainability
8. Airworthiness of Aircraft	Aviation Safety & Environmental Sustainability
9. Facilitation	Economic Policies and Logistics Services
10. Aeronautical Telecommunications	Aviation Safety & Environmental Sustainability
11. Air Traffic Services	Aviation Safety & Environmental Sustainability
12. Search and Rescue	Aviation Safety & Environmental Sustainability
13. Aircraft Accident and Incident Investigation	Aviation Safety & Environmental Sustainability / KSA-NTSC
14. Aerodromes	Aviation Safety & Environmental Sustainability
15. Aeronautical Information Services	Aviation Safety & Environmental Sustainability
16. Environmental Protection	Aviation Safety & Environmental Sustainability
17. Security: Safeguarding International Civil Aviation Against Acts of Unlawful Interference	Aviation Security
18. The Safe Transport of Dangerous Goods by Air	Aviation Safety & Environmental Sustainability
19. Safety Management Systems	Aviation Safety & Environmental Sustainability

Note: For Annex-13 related State Letters, coordination between KSA-NTSC and AVSES will take place as required.

1.2.7.7 GACA Aviation Safety & Environmental Sustainability Departments Related Annexes:

The following table depicts the AVSES Departments with the abbreviations used for the purposes of this section.

Aviation Safety & Environmental Sustainability Department	Abbreviation
Aerodrome Safety	AGA
Air Navigation Safety	ANS
Airworthiness	AIR
Environmental Sustainability	ENV
Flight Operations	OPS
Personnel Licensing	PEL
Safety & Risk	SRD
Regulations & Standards	R&S

Table 1.2.7.7.1 below illustrates the ICAO Annexes and their related AVSES Department(s)

Table 1.2.7.7.1

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ICAO Annex	Department(s)
1. Personnel Licensing	OPS, AIR, ANS, PEL
2. Rules of the Air	OPS, AIR, ANS
3. Meteorological Service for International Air Navigation	ANS
4. Aeronautical Charts	ANS
5. Units of Measurement to be Used in Air and Ground Operations	All Departments
6. Operation of Aircraft	OPS, AIR
7. Aircraft Nationality and Registration Marks	OPS, AIR, PEL
8. Airworthiness of Aircraft	AIR
9. Facilitation	-
10. Aeronautical Telecommunications	OPS, AIR, ANS
11. Air Navigation Safety	ANS
12. Search and Rescue	ANS
13. Aircraft Accident and Incident Investigation	KSA-NTSC, SRD
14. Aerodromes Safety	AGA
15. Aeronautical Information Services	ANS
16. Environmental Sustainability	ENV, AGA, AIR, OPS
17. Security: Safeguarding International Civil Aviation Against Acts of Unlawful Interference	-
18. The Safe Transport of Dangerous Goods by Air	OPS
19. Safety Management Systems	All Departments

1.2.7.9. Duties and Responsibilities of the Aviation Safety & Environmental Sustainability Regulations & Standards General Department.

- A. To perform tasks related to the management of ICAO State letters on behalf of GACA Aviation Safety & Environmental Sustainability Sector.
- B. To make inter-departmental coordination to respond to ICAO on the matters of SARPs amendment.
- C. To initiate comments on the legal/regulatory implications of SARPs amendment.
- D. To advise other Aviation Safety & Environmental Sustainability departments on legal/regulatory matters with reference to the amendment and the existing laws and regulations.
- E. To formulate recommendations regarding the adoption or filing differences of SARPs amendment.

1.2.7.11. Duties and Responsibilities of Aviation Safety & Environmental Sustainability Departments (except the Regulations & Standards General Department).

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A. To review the State letters and coordinate with the Regulations & Standards General Department to prepare consolidated responses to the amendments and identify the regulatory changes (if any).

B. To coordinate with the Regulations & Standards General Department in preparing the work plan including timelines for amendment of the existing regulation (when required).

1.2.7.13. Procedures for Coordination of ICAO State Letter (Amendment to ICAO Annex SARPs).

The Regulations & Standards General Department, in coordination with the other departments within the AVSES, is responsible for the coordination to provide response to ICAO State Letters that are related to the Aviation Standards and involving SARPs amendments.

1.2.7.15. Management of ICAO State Letters: Receipt and Distribution of State Letters.

A. In practice, ICAO may not send all State Letters to the Member States by mail, therefore, for the effective and timely management of ICAO State Letters regarding SARPs amendment, and in support of the handling process conducted by the International Cooperation Department within the Air Transport & International Cooperation Sector, the Regulations & Standards General Department will monitor the ICAO State Letters via the ICAO electronic distribution system.

B. The Aviation Regulations & Standards General Department will continuously monitor the ICAO electronic distribution system for state letters regarding SARPs amendments related to AVSES on a weekly basis at minimum.

C. The Regulations & Standards General Department will review the content of the State Letters within two weeks then distribute them to the concerned Department(s) within AVSES for their information, comments (as to the perceived impact), and necessary action along with a suitable deadline for receiving other departments' inputs as determined by the Aviation Regulations & Standards General Department.

D. The Regulations & Standards General Department will verify the responses from the concerned departments within two weeks and jointly recommend to the Executive Vice President Aviation Safety & Environmental Sustainability the required action by the AVSES and the response to the ICAO State Letter.

E. Upon the approval of the Executive Vice President Aviation Safety & Environmental Sustainability of the required action(s), the Regulations & Standards General Department will coordinate with the concerned AVSES department(s) to perform the required action(s) before at least one month prior to the State Letter due date.

F. If the required action(s) includes amendment to the GACARs, the process outlined in Section-10 of this Chapter will be followed.

G. If the required action(s) include the need to file differences to the ICAO, the established process and procedure in Section-8 of this chapter will be followed.

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H. Upon the approval of the Executive Vice President Aviation Safety & Environmental Sustainability, and finalizing the required actions, the (NCCMC) will send the response to the State Letters to the ICAO and will keep the International Cooperation Department within the Economic Policies and Services Logistics Sector copied.

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Section 8. Management of ICAO Differences

1.2.8.1 General.

- A.** The purpose of this section is to stipulate the GACA Aviation Safety & Environmental Sustainability’ policies and procedures regarding the management of differences between the ICAO SARPs and the GACARs.
- B.** The following is a quote from ICAO Document-9734 Safety Oversight Manual Part A “ In order to keep up-to-date the status of compliance and notification of differences, Member States must be properly organized and staffed with qualified personnel capable of accomplishing these tasks”.
- C.** Determination, clear and concise expression, and notification of differences requires a good knowledge and understanding of the ICAO obligations, expectations, templates and tools regarding notification of differences.
- D.** Ideally, when national regulations are drafted, rule makers should keep in mind that differences will have to be determined and notified at some point, if applicable, and reviewed periodically. Rule makers might even find it advantageous to already identify and formulate differences when the national rules are being drafted, since the level of compliance with, or departure from ICAO provisions should be especially easy to identify at that time. Such an approach has proven to speed-up and facilitate notification of differences.
- E.** As previously stated, the degree or alignment, or non-alignment, of the national rules with ICAO SARPs may significantly influence the level of complexity of the determination and formulation of differences. While notification of differences may be perceived as a tedious task, it represents only a fraction of the work and time needed for implementing SARPs (drafting of national rules and associated material, information of regulated entities, enforcement of rules etc....).
- F.** The ICAO has developed the EFOD database, launched on 1 April 2011, which provides States with the opportunity to enter data into an online data base, prefilled with current Annex provisions. Once completed, the data base gives States personnel convenient access to a repository of compliance and difference information, as well as to additional information (e.g. latest ICAO provisions for which a re-filing of differences is required, remarks which can also constitute helpful records to State staff in managing compliance with individual SARPs and in passing on knowledge to incoming staff, statistical data which provides a “big picture” overview of the situation in the State, differences information from other States, etc....).
- G.** Alternatively, States may file their differences through a « paper-based » process, since the intention is to leverage technology and transition to the EFOD system, which currently contains all Annexes except Annex 17.
- H.** States may use the Compliance Checklist validation button to file notification of difference when submitting the

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Compliance Checklists through the USOAP CMA. Submitting Annexes Compliance Checklists for Validation is an alternative means for filing differences to all Annexes (except Annex 17).

1.2.8.3. Categories of Differences.

As notifications of differences may correspond to different scenarios, the following categories of differences are provided as a guide in determining whether a notifiable difference exists:

A. Category (a) Differences: A Contracting State's requirement is more exacting or exceeds SARP. This category applies when the national regulation and practices are more demanding than the corresponding SARPs, or impose an obligation within the scope of the Annex which is not covered by the SARPs. This is of particular importance where a Contracting State requires a higher standard which affects the operation of aircraft of other Contracting States in and above its territory. Table 1.2.8.3.1 provides some an example of a Category (a) difference.

Table 1.2.8.3.1

Annex Reference	Provision	Text of the difference to be notified to ICAO	Comments, including the reason for the difference
Annex 2, 3.3.1.3	A flight plan shall be submitted before departure to an air traffic services reporting office or, during flight, transmitted to the appropriate air traffic services unit or air ground control radio station, unless arrangements have been made for submission of repetitive flight plans	For flights crossing International borders, the flight plan should be submitted at least 30 minutes prior to departure	This additional requirement is considered to be necessary

B. A Contracting State's requirement is different in character or other means of compliance. This category applies when national regulation and practices are different in character from the corresponding SARPs, or when the national regulation and practices differ in principle, type or system from the corresponding SARPs, without necessarily imposing an additional obligation. The expression "different in character or other means of compliance" in b) would be applied to a national regulation and practice which achieves, by other means, the same objective as that of the corresponding ICAO SARPs and so cannot be classified under a) or c). Table 1.2.8.3.2. provides an example of a Category (b) difference.

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Table 1.2.8.3.2

Annex Reference	Provision	Text of the difference to be notified to ICAO	Comments, including the reason for the difference
Annex 3, 6.5.3	Area forecasts for low- level flights prepared in support of the issuance of AIRMET information shall be issued every 6 hours for a period of validity of 6 hours and transmitted to meteorological watch offices and/or aerodrome meteorological offices concerned not later than one hour prior to the beginning of their validity period.	The area forecasts are issued every 3 hours instead of 6 hours, but only from 7:00 to 22:00 local time	The frequency and issuance periods are considered to offer a better benefit/cost ratio

C. A Contracting State's requirement is less protective or partially implemented/not implemented. This category applies when the national regulation and practices are less protective than the corresponding SARP; when no national regulation has been promulgated to address the corresponding SARP, in whole or in part; or when the Contracting State has failed to bring its practices into full accord with the corresponding SARPs. Table 1.2.8.3.3. provides an example of a Category (c) difference.

Table 1.2.8.3.3

Annex Reference	Provision	Text of the difference to be notified to ICAO	Comments, including the reason for the difference
Annex 11, 2.31.1	Each prohibited area, restricted area, or danger area established by a State shall, upon initial establishment, be given an identification and full details shall be promulgated.	Even though this standard is implemented in practice, it has not been incorporated into national regulations	Incorporation is planned for the 2016 air traffic services code of regulations update.

1.2.8.5. Description of Differences.

A. Differences in substance should be described clearly and concisely and should allow the reader to easily grasp the scope of the differences. In general, the description should not be a copy of the national requirement, leaving it up to the reader to identify the differences against the ICAO requirement, but rather a description of the gaps. Consequently, it is to be assumed

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that no differences exist against the elements of the SARP which are not described in the difference.

B. When the State has not adopted any administrative obligations in order to implement a SARP, the difference may be notified as: “provision not incorporated into regulations”, rather than by a rewrite in the negative of the ICAO provision, even though both options are acceptable.

1.2.8.7. General Guidelines Regarding the Determination of Differences.

When determining whether a difference against a SARP exists, the Aviation Safety & Environmental Sustainability should assess to what extent the conditions in Articles 38 of the Chicago Convention are met. To this end, the following should be considered.

A. As explained in WP/15 (part II paragraph 2) of the 12th Session of the ICAO Assembly in 1959: “implementation of/compliance with SARPs may be regarded, in general, as having two main characteristics. The first comprises the administrative arrangements necessary to bring the ICAO requirements into force nationally; the second consists of the practical arrangements necessary, such as the provision of facilities, personnel, equipment, guidance, enforcement mechanisms etc. ...”

B. Therefore, Standard implementation, in general, can only be considered satisfactory when suitable administrative and practical arrangements exist and perform satisfactorily. For instance, when an administrative arrangement, bringing the regulation into force, is in place but not applied in practice, or when no suitable administrative arrangement exists even though some practical implementing activities take place, the State should notify a difference to the corresponding Standard until compliance is achieved.

C. It is considered that the implementation of recommended practices as being desirable. If a State chooses to implement a particular recommended practice, it should turn into a national requirement being given sufficient administrative force. For instance, Annex 10, Volume I, recommended practice 2.1.4.2 states: « Recommendation. — A State that approves GNSS based operations should ensure that GNSS data relevant to those operations are recorded ». If State X decides to implement this recommended practice, it should issue a national obligation in order to ensure that GNSS-based operations data are recorded.

D. In Article 38, the terms “comply in all respects”, “bring its own regulations or practices into full accord with”, appropriately refer, holistically, to the various dimensions of implementation. The State “regulations or practices”, “its own practice” and “practice of the State” in Article 38 interchangeably refer to the State administrative and practical arrangements, and their satisfactory functioning.

E. Therefore, if the Aviation Safety & Environmental Sustainability has determined that it has implemented the SARP through sufficiently robust administrative arrangements (such as regulations, or other documents carrying sufficient administrative force), and that it is “fair to say” that those arrangements are enforced and implemented “in the field” (for instance, while the possibility of offenders occasionally breaking the rule cannot be ruled out, it remains limited through effective enforcement), the State does not need to notify ICAO of any differences since it “complies in all respects” with the ICAO requirement and has brought its “regulations and practices” into full accord with it.

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Note 1: The ICAO Council, on 13 April 1948 adopted a resolution inviting the attention of Contracting States to the desirability of using in their own national regulations, as far as practicable, the precise language of those Standards that are of a regulatory character. In this regard, it should be noted that close adherence of a national regulation to the wording of SARPs be supported by effective enforcement mechanisms and rigorous implementation monitoring. It should be not being confused with a “copy and paste” exercise, which may require States to notify difference because SARP material are simply copied into national regulations, without effective linkage to actual implementation. Notwithstanding the resolution of the ICAO Council above, there may be a case that a State finds it necessary to use the text different from a SARP, which will not lead to States notifying differences because the purpose may be:

- a) further clarify the requirement, without introducing any difference in content; and/or
- b) be more prescriptive than the SARP, while meeting the performance requirement.

Note 2: The determination of differences should be performed in good faith, and in keeping with the State commitment, as an ICAO member State, to comply with the Convention.

1.2.8.9. When to Notify Difference.

A. ICAO informs Contracting States and international organizations, by State Letters, of the adoption of the amendment and requests for notification, before given dates, respectively of any disapproval as well as of compliance and differences.

B. The amendment will become effective, except for any part thereof in respect of which a majority of the Contracting States have registered their disapproval with the Council before the given date, which is the effective date of the amendment. That mechanism implements article 90 of the Convention, which gives all Contracting States the possibility, for three months, to disapprove of any part of an amendment adopted by the ICAO Council. This mechanism is distinct from the consultation of States on proposals for amendments, and the notification of differences.

C. Amendments, or such parts thereof as have become effective, will become applicable on a given date set by ICAO Council by which a State is expected to comply with and implement the amendment, when applicable to the State.

D. States are advised, typically by ICAO electronic bulletins, as soon as amendments have become effective (i.e. not a majority of Contracting States have registered disapproval of them, or part thereof). As it should be exceptional that a majority of Contracting States notify disapproval of Annexes amendments adopted by the ICAO Council, States may wish to take advantage of the whole period, from the adoption of the amendment by the ICAO Council to the applicability date of the amendment, to prepare for implementation of the amendment, and notification of differences.

E. Contracting States are requested to notify, at the latest a month before the applicability date, the differences that will exist on the applicability date between their national regulations and practices and the provisions of the whole Annex, as amended by all its amendments.

F. Contracting States also have an obligation, outside the amendment process, to give immediate notification to ICAO of the new differences which might exist, and, implicitly, to give immediate notification to ICAO of any differences which have been removed, and therefore are no longer current.

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1.2.8.11. Means of Notification.

A. Differences can be notified by sending to ICAO a Form on Notification of Compliance with or Differences (paper-based process) or through the Electronic Filing of Differences (EFOD) system at www.icao.int/usoap. The EFOD is a web-based tool that allows Member States to provide Compliance/Differences Information and facilitates the sharing of information by ICAO.

B. While the paper-based process employing the Form on Notification of Compliance with or Differences is still the primary means, Member States have been encouraged to transition using the EFOD system in order to address issues associated with the timeliness of the notification and/ or dissemination of differences, as provided in Article 38 of the Chicago Convention.

1.2.8.13. Identification of Differences.

The Aviation Safety & Environmental Sustainability is required to ensure that the existing national laws and regulations are consistent with the amendment to SARPs. If the laws or regulations are not fully compliant, a difference must be notified to the ICAO. Further, all the significant differences to SARPs need to be published in the AIP Gen 1.7 or AIP Supplement.

A. A Significant Difference is a difference from:

- 1) Any of the Standards in the Annexes.
- 2) Recommended Practices that are important for the safety of air navigation or, in the case of facilitation, for the speedy handling and clearance through customs, immigration, etc. of aircraft and the loads they carry.
- 3) Procedures for Air Navigation Services (PANS) that are important for the safety of air navigation; and
- 4) Regional Supplementary Procedures (SUPPS) that are important for the safety of air navigation.

B. It, therefore, follows that all the provisions in the ICAO Annexes that are Standards are significant, and that any differences between the national regulations or practices of a State and the related ICAO Standards are differences which must be notified. This is an obligation which originates from Article 38 of the Convention. In the matter of Recommended Practices, PANS and SUPPS, only those differences that are important for the safety of air navigation or, in the case of facilitation, to the speedy handling and clearance through customs, immigration, etc. of aircraft and their loads are significant. Because of their nature, most of the Recommended Practices in ICAO Annexes contribute to the safety of air navigation.

C. Differences from the PANS-ABC (Doc 8400) would not constitute “significant” differences.

Note: More guidance on significant differences can be found in para 5.8 of the ICAO Aeronautical Information Services Manual (Doc 8126).

D. A decision for the President to introduce a standard that is inconsistent with ICAO SARPs requires adequate justification and needs to be addressed as part of the regulatory work plan.

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E. Each Aviation Safety & Environmental Sustainability Department must always assess whether the outcomes of their activities will create new differences, removes existing differences, or varies the status of existing differences.

F. In the event of any difference to the SARPs, a difference justification and description is to be developed by the Aviation Safety & Environmental Sustainability.

1.2.8.17. Procedure for Notification of Differences.

A. The Executive Vice President Aviation Safety & Environmental Sustainability is responsible for notifying differences to ICAO and will notify the differences as per guidelines provided by ICAO in the respective State Letter.

B. The (NCCMC) will submit the differences to ICAO Annexes that are identified by the Aviation Safety & Environmental Sustainability Regulations & Standards Department and approved by the Executive Vice President Aviation Safety & Environmental Sustainability.

C. Upon the notification of difference to the ICAO, significant difference will also be published in the KSA AIP.

D. The Aviation Safety & Environmental Sustainability Department in cooperation with the affected department(s) will update the online Compliance Checklist including approved differences.

Note: Completion of online Compliance Checklist on EFOD would constitute filing of differences to ICAO.

E. Aviation Safety & Environmental Sustainability departments needs to refer to the ICAO-Net website (<https://portallogin.icao.int/>) for the most recent version of the ICAO SARPs.

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CHAPTER 2. THE GENERAL AUTHORITY OF CIVIL AVIATION (GACA) HISTORY, ORGANIZATION, AND REGULATORY RESPONSIBILITIES

Section 9. Management of FAA Regulations & Guidance Materials Updates

1.2.9.1. Relationship between GACA and FAA Aviation Safety Regulatory Systems.

A. Aviation Safety Regulations:

- 1) Despite their similarities in structure and numbering, the GACARs are different from the FARs.
- 2) However, some GACAR parts are actual incorporation by reference of the FARs. Table 1.2.9.1.1 below lists the GACAR parts that incorporate the corresponding FARs by reference.

Table 1.2.9.1.1

GACAR Part	FAR Part incorporated by reference
23	23
25	25
27	27
29	29
31	31
33	33
34	34
35	35

- 3) In addition, there are certain portions of individual GACAR Parts that incorporate the corresponding portions in the FAR Parts by reference. An example of this are the appendices to FAR Part-60 which are incorporated by reference in GACAR part-60.

B. FAA Orders:

- 1) Although the GACA eBook was, in principle, built around the FAA Order-8900, GACA eBook is fully customized for the applications of the GACARs.
- 2) However, there are some FAA Orders that being referenced within the GACA eBooks, and sometimes, some orders are being incorporated by reference. Example for this is the FAA Practical Test Standards for Airmen Certification Standards (ACS).

C. Advisory Circulars:

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1) Due to their advisory nature, FAA Advisory Circulars are often being referenced in the GACA eBooks.

2) GACA Advisory Circular AC-002 titled “APPLICABILITY AND USE OF FAA ADVISORY CIRCULARS” provides sufficient background on this issue.

D. The above points provide sufficient justification to establish a process for monitoring and tracking changes and amendment to the FAA Aviation Regulation System.

1.2.9.3. Method of Monitoring and Tracking.

The monitoring and tracking of changes and amendments to the FAA Aviation Safety Regulation System is performed by the publicly available email subscription via the FAA page: <https://www.faa.gov/contact/subscribe/>.

1.2.9.5. Duties and Responsibilities of the Aviation Standards Regulations & Standards Department.

A. To perform tasks related to the management of monitoring and tracking update, changes, and amendments to the FAA Aviation Safety Regulation System via public email subscription on behalf of GACA Aviation Standards Sector.

B. To make inter-departmental coordination for taking the appropriate actions resulting from those updates.

C. To initiate comments on the legal/regulatory implications of required amendments to the GACA Aviation Safety Regulations System (when amendments are required).

D. To advise other Aviation Standards departments on legal/regulatory matters with particular reference to the amendment and the existing laws and regulations.

1.2.9.7. Duties and Responsibilities of Aviation Safety & Environmental Sustainability Departments (except for the Regulations & Standards department).

A. To review the related FAA updates and coordinate with the Regulations & Standards Department to determine if any amendments are required to the GACA Aviation Safety Regulation System.

B. To coordinate with the Regulations & Standards Department in preparing the work plan including timelines for amendment of the existing regulations, eBooks, or Advisory Circulars (when required).

1.2.9.9. Procedures for handling received FAA Regulatory Update.

A. The Aviation Standards Regulations & Standards Department continuously receives FAA regulatory updates via email subscription.

B. The Aviation Standards Regulations & Standards Department reviews each received update for applicability and concerned Aviation Standards department(s).

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- C.** If the update is not related to the Aviation Standards, the Aviation Standards Regulations & Standards Department will not perform any action.
- D.** If the update is related to the Aviation Standards, the Aviation Standards Regulations & Standards Department will determine the concerned Aviation Standards department(s) and forwards the FAA update accordingly to the applicable department(s) with a deadline date for receiving the required input(s).
- E.** If the concerned department(s) in coordination with the Aviation Regulations & Standards Department determined that there is no action needed as a result of the FAA update, then no further action will be taken.
- F.** Otherwise, the concerned department(s) in coordination with the Aviation Regulations & Standards Department will determine the action(s) needed and establish the required working plan(s) to accomplish the required action after obtaining the approval of the Executive Vice President Aviation Standards.
- G.** If the required action involves amendment to the GACARs, the established process and procedure in Section-10 of this Chapter will be followed.

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CHAPTER 2. THE GENERAL AUTHORITY OF CIVIL AVIATION (GACA) HISTORY, ORGANIZATION, AND REGULATORY RESPONSIBILITIES

Section 10. General Rulemaking Procedure

1.2.10.1. General.

The purpose of this section is to establish the process and procedure for introducing a new rule or amending an existing rule in accordance with GACAR Part-11.

1.2.10.3. Authority.

A. The Civil Aviation Law (Royal Decree No. M/44), vested the authority for administering all civil aviation affairs in the Kingdom of Saudi Arabia in GACA, which is governed by a Board of Directors. The GACA Board of Directors delegates to the GACA President, the responsibility for the administration of regulatory policy in the sector of civil aviation. The President is delegated the authority to publish supplemental policy, procedures, and guidance to aid in the administration of the regulations.

B. The initiation of a rulemaking process starts with a directive from the Executive Vice President Aviation Safety & Environmental Sustainability to the Regulations & Standards Directorate.

C. A permanent GACA Regulatory Evaluation Committee (GREC) has been formed under the direction of the President (Order-7904-42 Dated 18th September, 2022). The GREC is headed by the Legal Affairs directorate and composed of representatives from all GACA sectors in addition to any members appointed by the President. The governance of the GREC can be found in the referenced order.

1.2.10.5. Duties and Responsibilities of the Regulation & Standards Directorate.

A. Assuming the major role of being the focal point for the facilitation and coordination of the Aviation Standards rulemaking processes.

B. Assuring harmonization and compliance with all national and international associated laws, policies, and standards.

C. Handling of the administrative processes of rulemaking.

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1.2.10.9. Initiation of a Rulemaking Process.

The initiation of any rulemaking process will start with a directive from the Executive Vice President Aviation Safety & Environmental Sustainability. The initiation of a rulemaking process will be as a result of, but not limited to, any of the following:

- A. Amendments to the Civil Aviation Law.
- B. Amendments to GACA Policies and Regulations.
- C. Amendments to ICAO SARPs.
- D. Recommendations by Aviation Safety & Environmental Sustainability Departments.
- E. Recommendations by any GACA regulated entity.
- F. Planned amendments in accordance with the established periodic rulemaking plan.

1.2.10.11. Initiation of a Rulemaking Process.

The initiation of any rulemaking process will start with a directive from the Executive Vice President Aviation Safety & Environmental Sustainability. The initiation of a rulemaking process will be as a result of, but not limited to, any of the following:

- A. Aviation Safety & Environmental Sustainability Regulation & Standards Directorate.
- B. Aviation Safety & Environmental Sustainability Quality Assurance Department.
- C. Any related department from the Aviation Standards and/or GACA Sectors.
- D. Any other member as deemed required by the Executive Vice President.
- E. Selected organizations from the aviation industry as deemed required by the Executive Vice President Aviation Safety & Environmental Sustainability.

1.2.10.13. The Process of Rulemaking.

- A. Initiation of the rulemaking process.
- B. Establishment of a committee.

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- C. Performing the required analysis.
- D. Preparation of the new rule or amendment to existing rules.
- E. Consultation with affected aviation industry regulated entities as deemed required by the Executive Vice President Aviation Safety & Environmental Sustainability.
- F. Soliciting public comments as deemed required by the Executive Vice President Aviation Safety & Environmental Sustainability.
- G. Preparation of the rulemaking docket.
- H. Amending the rulemaking docket when applicable.
- I. Consulting the GREC for their recommendations and remarks.
- J. Granting final approvals by the President.
- K. Amending the existing rules accordingly.
- L. Promulgation of the new rule/amendment.
- M. Updating KSA AIP (as required).
- N. Updating ICAO SARPs compliance checklists (as required).
- O. Filing of ICAO SARPs differences (as required)
- P. Filing and archiving.

1.2.10.15. Rulemaking Procedure.

A. Initiation of the rulemaking process.

The Executive Vice President Aviation Safety & Environmental Sustainability issues instructions to the Aviation Safety & Environmental Sustainability Regulations & Standards Directorate to initiate a rulemaking process in accordance with (1.2.10.9) of this section.

B. Establishment of the committee

- 1) As deemed required, the Executive Vice President Aviation Safety & Environmental Sustainability selects and assigns the amendment responsibility to a committee in accordance with (1.2.10.13) of this section in addition to assigning the committee team leader.
- 2) The Aviation Safety & Environmental Sustainability Regulations & Standards Directorate will open a new

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project and assigns a project number which will be used as the final rulemaking docket number.

3) The Aviation Safety & Environmental Sustainability Regulations & Standards Directorate will assume the role of facilitating all the activities of the committee including the documentation and tracking of all committee activities.

C. Performing the required analysis.

Depending on the scope and complexity of the rulemaking project, the committee will perform the following:

- 1) Defining and listing the objective(s) of the rulemaking project.
- 2) Continuous verification of compliance with the Civil Aviation Law, other related KSA Laws, GACA related Regulations and Policies, and international binding Standards.
- 3) Conduct aviation safety risk analysis as required.
- 4) Conduct benchmarking as required.
- 5) Analyze and list national and international implications of the new rulemaking as applicable.
- 6) Coordinate with other GACA sector as required to assure full synchronization with existing other regulations as applicable.
- 7) Analyze and list the implication on other amendments needed for guidance materials and any other related documents.

D. Preparation of the new rule, or amendment to existing rules.

- 1) The committee will use the standard GACA Rulemaking Docket form (GACA_REG_F-002) to prepare a new rulemaking docket using the same previously assigned rulemaking project number.
- 2) The committee will populate the applicable fields in the rulemaking docket in accordance with (1.2.10.15.C) above. Extra supporting documents may be attached as required.

E. Consultation with affected aviation industry regulated entities (as required).

1) Consultation with the affected aviation industry is optional at the discretion of the Executive Vice President Aviation Safety & Environmental Sustainability. When required, the committee will consult with the affected aviation regulated entities regarding the new rulemaking project as follows:

- i. The committee will define and list the affected entities.
- ii. The committee will communicate with those entities in a unified manner assuring that the whole new

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rulemaking process is well communicated.

iii. The committee will establish an appropriate deadline for receiving inputs.

iv. All received inputs will be analyzed by the committee and actioned upon accordingly. All inputs and resulting actions will be a part of the new rulemaking project documentation.

F. Preparation of the final rulemaking docket.

1) Based on the complete work of the committee, the Aviation Standards Regulations & Standards Directorate will prepare a final rulemaking docket using the standard format (GACA_REG_F-002) and attach the appropriate documents as determined by the committee.

2) The rulemaking docket will be signed by the head of the Aviation Safety & Environmental Sustainability Regulations & Standards Directorate and the head(s) of the Safety & Aviation Standard Department(s) affected by the new rulemaking.

G. GACA Regulatory Evaluation Committee (GREC) review

1) Once the docket and the amendment are in their final form, the Head of the Regulations & Standards Directorate will communicate the amendment to the GREC for their review and approval, if returned with comments, then the feedback received will be taken into account before proceeding to the next step.

H. Granting final approvals by the president.

Upon the review and approval by the Executive Vice President Aviation Safety & Environmental Sustainability, the final rulemaking docket will be forwarded to the President for final approval.

I. Amending the existing rules accordingly.

Upon securing the final approval of the President, the Aviation Standards Regulations & Standards Directorate will amend:

- 1) The central system for the Safety & Aviation Safety Regulations (GACARs) accordingly.
- 2) The history of changes log file.

J. Promulgation of the new rule/amendment.

The Aviation Safety & Environmental Sustainability Regulations & Standards Directorate will:

- 1) Publish the new/amended rule on the GACA web site.
- 2) Issue an email announcement to the Aviation Standards regarding the new rulemaking, and to those who subscribed for the GACA Regulatory Notification Service.

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K. Updating KSA AIP (as required).

The Aviation Safety & Environmental Sustainability Regulations & Standards Directorate will coordinate with the Aviation Safety & Environmental Sustainability Aeronautical Information Department on the required KSA AIP update when required.

L. Updating ICAO SARPs compliance checklists (as required).

1) The Aviation Safety & Environmental Sustainability Regulations & Standards Directorate will coordinate with the affected Aviation Standards Department(s) to:

- i. Review the ICAO SARPs compliance checklist (CC) in light of the new rulemaking and update as required.
- ii. Identify any difference from the ICAO SARPs accordingly.

M. Filing of ICAO SARPs differences (as required).

In cases where differences from the ICAO SARPs have been identified, the Aviation Safety & Environmental Sustainability Regulations & Standards Directorate in coordination with affected Aviation Safety & Environmental Sustainability Department(s) will perform the ICAO electronic filing of differences (EFOD).

N. Filing and archiving.

The Aviation Safety & Environmental Sustainability Directorate will be responsible to maintain and update a safe and secure filing and archiving system for all rulemaking projects. The contents of each rulemaking project must contain all documentary evidence pertaining to the executed procedures during the rulemaking process.

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Section 11. GACA Advisory Circulars

1.2.11.1. Purpose.

The purpose of this section is to stipulate the policies and processes adopted by the GACA Safety & Aviation Standards for the development and issuance of Advisory Circulars (AC).

1.2.11.3. General.

A. GACA Advisory Circulars (AC) are issued under the authority of the Executive Vice President Aviation Safety & Environmental Sustainability.

B. GACA Advisory Circulars:

- 1) Provide guidance to GACA regulated entities (organizations and personnel) for compliance with the GACARs;
- 2) Define acceptable means, but not the only means, of accomplishing or showing compliance with the GACARs;
- 3) Are generally informative in nature;
- 4) Are neither binding nor regulatory;
- 5) Provide additional regulatory information to aid in the understanding and application of the GACARs; and
- 6) Never introduce new or additional regulatory requirements. They simply offer information and guidance related to the regulatory requirements contained in the GACARs.

1.2.11.5. Advisory Circulars Development and Issuance Process.

A. The Aviation Safety & Environmental Sustainability Regulations & Standards Department is the custodian of the development and issuance process of GACA Advisory Circulars.

B. GACA AC-000-00 contains an introduction to GACA Advisory Circulars in addition to a listing of all GACA

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Advisory Circulars..

C. When a need arises, the Executive Vice President Aviation Safety & Environmental Sustainability issues instructions to the appropriate Aviation Safety & Environmental Sustainability Department(s) to work in coordination with the Regulations & Standards Department in the development of the required Advisory Circular.

D. The Aviation Safety & Environmental Sustainability, Regulations & Standards Department assures that any Advisory Circular is prepared in compliance with (1.2.11.3.B) above.

E. The development of an advisory circular may take any format as long as the contents of the advisory circular fully adheres to the stipulated conditions in (1.2.11.3.B).

F. Upon finalizing the proposed AC, the Regulations & Standards Department will prepare the Aviation Safety & Environmental Sustainability Advisory Circular Approval Docket (Form-GACA_AC_F-002) for upward submission to the Executive Vice President Aviation Safety & Environmental Sustainability for review and final approval.

G. Upon the final approval by the Executive Vice President Aviation Safety & Environmental Sustainability, the Regulations and Standards Department will:

- 1) Update the table of AC-000-00 and re-issue its updated version.
- 2) Publish the Advisory Circular on the official GACA website.
- 3) Publish and email the required announcement as prescribed in Section-14 of this Chapter.

H. File and archive the GACA Advisory Circular Approval Docket.

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Section 12. GACA Safety Bulletins

1.2.12.1. Purpose.

The purpose of this section is to stipulate the policies and processes adopted by the GACA Aviation Safety & Environmental Sustainability for the development and issuance of Safety Bulletins (SB).

1.2.12.3. General.

A. GACA Safety Bulletins (SB) are issued under the authority of the GACA Executive Vice President of Aviation Safety & Environmental Sustainability.

B. GACA Safety Bulletins:

- 1) Contain important safety information and may include recommended actions;
- 2) Besides the specific action recommended in a GACA-SB, an alternative action may be as effective in addressing the safety issue named in the GACA-SB;
3. The contents of a GACA-SB document do not have the force and effect of law and are not meant to bind the public in any way; and
4. Are intended only to provide clarity to the public regarding existing requirements under GACA regulations.

1.2.12.5. GACA-SB Development and Issuance Process.

A. The Aviation Standards Regulations & Standards Department is the custodian of the development and issuance process of GACA Safety Bulletins.

B. GACA SB-000 contains an introduction to GACA-SBs in addition to a listing of all GACA-SBs.

C. When a need arises, the Executive Vice President Aviation Safety & Environmental Sustainability issues instructions to the appropriate Aviation Standards Department(s) to work in coordination with the Regulations & Standards Department in the development of the required GACA-SB.

D. The Aviation Standards Regulations and Standards Department assures that any GACA-SB is prepared in

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compliance with (1.2.12.3.B) above.

E. A GACA-SB will be developed using the Aviation Standards GACA-SB Template (Figure-1.2.12.7)

F. Upon finalizing the proposed GACA-SB, the Regulations and Standards Department will prepare the Aviation Standards Safety Bulletin Approval Docket (GACA_SB_F-002) for upward submission to the Executive Vice President of Aviation Safety & Environmental Sustainability for review and final approval.

G. Upon the final approval by the Executive Vice President of Aviation Safety & Environmental Sustainability, the Regulations and Standards Department will:

- 1) 1.Publish the GACA-SB on the official GACA website.
- 2) 2.Publish and email the required announcement as prescribed in Section-14 of this Chapter.

H. File and archive the GACA Safety Bulletin Approval Docket.

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Figure-1.2.12.7 GACA Safety Bulletin (SB) Template

GACA Safety Bulletin

GACA SB-XXX

Issuance date: dd-month-yyy

Insert the subject of the SB

Applicability:

Aerodromes:	Insert a specific statement
Air Traffic:	Insert a specific statement
Airspace:	Insert a specific statement
Airworthiness:	Insert a specific statement
Flight Operations:	Insert a specific statement
Ground Services:	Insert a specific statement
Others:	Insert a specific statement

This Document is available at: **insert the link where all GACA-SBs are posted.**

General:

GACA Safety Bulletins (SB) are issued under the authority of the GACA Executive Vice President of Aviation Safety & Environmental Sustainability. GACA SBs contain important safety information and may include recommended actions. Besides the specific action recommended in a GACA-SB, an alternative action may be as effective in addressing the safety issue named in the GACA-SB. The contents of a GACA-SB document do not have the force and effect of law and are not meant to bind the public in any way. GACA SBs are intended only to provide clarity to the public regarding existing requirements under GACA regulations.

Subject: **insert the subject of the Safety Bulletin**

Purpose: **Insert the purpose of this Safety Bulletin**

Background: **Provide the required background including any regulatory references.**

Recommended Action(s): **Provide the recommended actions to be taken by specific parties.**

Contact: Questions or comments regarding this GACA-SB should be directed to the **insert the title and email of the initiating department within the Aviation Safety & Environmental Sustainability.**

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Section 13. Soliciting Public Comments on Regulatory Amendments

1.2.13.1. General.

The purpose of this section is to stipulate the policies and procedure adopted by the Aviation Safety & Environmental Sustainability to solicit public comments on the Aviation Standards regulatory amendments.

1.2.13.3. Regulatory References and Policy.

A. GACAR Part-11 § 11.7 Rulemaking Procedures “(c) Whenever the President so determines, the GACA may publish proposed rulemaking actions to solicit comments from interested persons. Before making decisions to initiate, amend, or repeal a rule, the President may consider comments submitted in accordance with procedures designated by the GACA”.

B. Soliciting public comment on GACA Aviation Standards’ regulatory amendments is under the authority of the Executive Vice President Aviation Safety & Environmental Sustainability.

C. Aviation Standards’ regulatory amendments include but not limited to any of the following:

- 1) GACARs
- 2) GACA eBooks
- 3) GACA Airworthiness Directives (AD)
- 4) GACA Advisory Circulars (AC)
- 5) GACA Safety Bulletins (SB)

D. The Aviation Standards Regulations & Standards Department is the custodian of the solicitation of public comments under the instructions of the Executive Vice President Aviation Safety & Environmental Sustainability..

1.2.13.5. Duties and Responsibilities of the Aviation Safety & Environmental Sustainability Regulations & Standards Department.

A. Managing the public announcement for the solicitation of public comments on the official GACA website.

B. Compilation and organization of received public comments.

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1.2.13.7. Soliciting Public Comments Process.

A. The initiation of any public comment's solicitation will start with a directive from the Executive Vice President Aviation Safety & Environmental Sustainability to the Regulations & Standards Department.

B. The Executive Vice President's instructions will include but not limited to:

- 1) The regulatory amendment subject and the associated document(s) to be published.
- 2) The start and end dates to receive public comments.

C. The Aviation Safety & Environmental Sustainability Regulations & Standards Department will manage the announcement for inviting public comments on the official GACA website while managing the receipt of all submitted public comments.

D. Upon the end date for receiving public comments, the Aviation Safety & Environmental Sustainability Regulations & Standards Department will

- 1) Manage the closure of receiving public comments and mark the announcement as "closed".
- 2) Compile and organize all received public comments for upward submission to the Executive Vice President Aviation Safety & Environmental Sustainability.
- 3) File and archive all received public comments.

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Section 14. Announcement of, and subscriptions to Aviation Standards Regulatory Amendments updates

1.2.14.1. General.

The purpose of this section is to stipulate the policies and procedure adopted by the Aviation Standards for the announcements of, and subscriptions to Aviation Standards Regulatory Amendments updates.

1.2.14.3. Regulatory References and Policy.

A. GACAR Part-11 “§ 11.7 Rulemaking Procedures: (f) New or revisions to the GACAR are promulgated as outcome of the rule making process based on amendments issued by the ICAO, or proposals made by the stakeholders or safety enhancing initiatives recommended during the periodic reviews of KSA aviation safety policy and performance”.

B. In addition, the policy of Aviation Standards is to promulgate and announce all of Aviation Standards’ regulatory amendments that include, but not limited to any of the following:

- 1) General Authority of Civil Aviation Regulations (GACARs)
- 2) GACAR Implementation Policies, Processes, and Procedures (s)
- 3) GACA Airworthiness Directives (AD)
- 4) GACA Advisory Circulars (AC)
- 5) GACA Safety Bulletins (SB)

C. The adopted promulgation method is through publishing on the GACA official website at : <https://gaca.gov.sa/web/en-gb/page/current-regulations>

D. The adopted announcement methods are through:

- 1) Publishing Aviation Standards’ regulatory updates on the GACA official website.
- 2) Email subscription available to any interested person via the GACA official website.

E. The Aviation Standards Regulations & Standards Department is the custodian of the processes of promulgation, announcement, and subscriptions to the Aviation Standards’ regulatory updates.

1.2.14.5. Announcement of Aviation Standards’ Regulatory Updates.

A. Upon finalizing and promulgating any Aviation Standards’ regulatory update as prescribed in (1.2.14.3 (2)) above, the Aviation Standards Regulations & Standards Department will publish the regulatory update announcement on the appropriate section on the GACA official website Aviation Standards’ page.

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B. The announcement will include, but not limited to the following:

- 1) The date of the announcement.
- 2) A descriptive title with an appropriate regulatory reference (for example, the GACAR Part, or eBook volume/chapter)
- 3) Appropriate links to the amended regulatory materials.

1.2.14.7. Email Subscription to Aviation Standards' Regulatory Updates.

A. Email subscription to Aviation Standards regulatory updates is available to any interested person.

B. The method of email subscription is available and published on the official GACA website on the Aviation Standards' webpage.

C. Upon making any Aviation Standards Regulatory Update announcement as prescribed in (1.2.14.5), the Aviation Standards Regulations & Standards Department will send the announcement to all email subscribers.

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Section 15. Awareness of GACA Aviation Safety & Environmental Sustainability Regulatory Updates

1.2.15.1. General.

The purpose of this section is to stipulate the policies and procedure adopted by the Aviation Safety & Environmental Sustainability Sector (AVSES) regarding the continuous awareness of the AVSES Sector's regulatory updates amongst all concerned AVSES staff and regulated entities.

1.2.15.3. Regulatory References and Policy.

A. The following are the regulatory references for the amendments and updates of the GACA AVSES regulatory materials:

- 1) GACAR PART 11 - GENERAL RULEMAKING PROCEDURES.
- 2) GACA eBook Volume-1, Chapter-2, Section 10. General Rulemaking Procedure.
- 3) GACA eBook, Volume-1, Section-1, (1.1.1.5. Manual Revisions).
- 4) GACA eBook, Volume-1, Section-11 GACA Advisory Circulars.
- 5) GACA eBook, Volume-1, Section-12 GACA Safety Bulletins.

1.2.15.5. Policy.

- 1) It is the policy of the GACA AVSES Sector to effectively disseminate the awareness of any AVSES Regulatory Amendments/Updates to the concerned GACA AVSES Staff in addition to the affected GACA Regulated Entities.
- 2) The GACA AVSES Regulations & Standards Department, jointly with the regulatory update initiating GACA AVSES Department will plan and execute any regulatory update awareness campaign targeted for the concerned AVSES staff and affected regulated entities.

1.2.15.7. Procedures.

- 1) Upon any GACA AVSES update to any of the elements in (1.2.14.3), GACA AVSES Regulations & Standards

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Department will send via email, the appropriate update announcement to all the GACA AVSES Staff in addition to all Regulatory Update subscribers as in Volume-1, Chapter-2, Section-14 of this handbook.

2) The GACA AVSES Regulation & Standards Department, jointly with GACA AVSES Regulatory update initiating department will establish the required awareness plan targeted for the concerned GACA AVSES staff and the affected regulated entities.

3) The awareness plan will include, but not limited to the following:

- i. Determination of the affected population.
- ii. The methodology used to disseminate the awareness such as short presentations, online meetings, or any other appropriate methodology.
- iii. The timing and schedule of the awareness campaign.
- iv. Who will deliver/facilitate any awareness session.

4) All records of the regulatory awareness campaigns will be retained by the AVSES Regulations & Standards Department.

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CHAPTER 3. INSPECTOR RESPONSIBILITIES AND ADMINISTRATION

Section 1. Aviation Safety Inspector Responsibilities

1.3.1.1. GENERAL. This chapter addresses the responsibilities, standards of conduct, and credentials of aviation safety inspectors (Inspectors). This section describes the general responsibilities of the Inspector. Inspectors of the General Authority of Civil Aviation (GACA) Aviation Safety & Environmental Sustainability (AVSES) Sector play a key role in ensuring that the Kingdom of Saudi Arabia (KSA) civil aviation system continues to be among the safest in the world. This responsibility for aviation safety covers almost every facet of civil aviation, including airmen, aircraft, air operators, air agencies, aerodromes, airspace and air navigation services.

1.3.1.3. INSPECTOR RESOURCE DATA BASE.

A. Inspector Resources. The GACA AVSES Inspector workforce is made up of many highly trained and experienced personnel and together they represent a vast pool of knowledge and practical experience in all matters related to civil aviation. An Inspector's specialized knowledge of, and experience with, specific aspects of civil aviation may be beneficial to another Inspector during proving flights, check rides, accident investigations, recurrent certifications, maintenance and inspection program approval, and a variety of other activities which Inspectors are involved.

B. Use of the GACA Activity Report (GAR).

This handbook has been designed to work in concert with a system for recording the activities carried out by the GACA AVSES Inspector workforce. This system is known as the GACA Activity Reporting system (GAR).

NOTE: At the present time the GAR system is not yet implemented so all references to the GAR must be disregarded until further notice.

- 1) The GACA Activity Report (GAR) will be beneficial in locating specialized resources. When fully implemented, the GAR reporting system will enable GACA personnel to identify Inspectors with specific experience or knowledge. The information recorded on the GAR forms will be available to GACA management.
- 2) All Inspectors, managers, and supervisors are responsible for maintaining records currency. After completing an initial questionnaire and making the appropriate GAR entry, all Inspectors, including managers and supervisors, will be responsible for keeping their personal record current by entering any changes to the original information (such as additional type rating, training, team participation) in the record as necessary. The Inspector should record the GAR entry so that future record updates can be made.

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CHAPTER 3. INSPECTOR RESPONSIBILITIES AND ADMINISTRATION

Section 2. Inspector Ethics and Conduct

1.3.2.1. PURPOSE. This section contains direction and guidance for aviation safety inspectors (Inspectors) pertaining to principles of ethics and conduct as they affect the performance of duties. Although some basic outlines are listed, this section could not possibly cover all circumstances an Inspector may encounter. As Inspectors are always in the public eye, the General Authority of Civil Aviation (GACA) expects them to exercise good judgement and professional behavior at all times while on and off duty.

A. Unique Responsibilities of Inspectors. Inspectors are exposed to a number of circumstances that are critical to their positions and that are not pertinent to other GACA job functions. The Inspector has the critical position of frequently interpreting and evaluating the quality of training programs, manuals, airman performance, and overall safety activities. It is imperative that all Inspectors be sensitive to the responsibilities and demands of their positions and be objective and impartial while performing their duties. Inspectors must also be sensitive to actual as well as perceived appearances of any conflict that could disrupt the effectiveness or credibility of the GACA Aviation Safety & Environmental Sustainability (AVSES) mission.

B. Government of the Kingdom Saudi Arabia Requirements. In addition to the specific requirements set out in this section, Inspectors are required to comply fully with the standards of conduct set forth by the Government for all employees of the public service.

1.3.2.3. GENERAL.

A. Standards of Professionalism for GACA AVSES. The definition and standards below apply to all GACA AVSES employees. The policy establishes fair and exacting standards of ethics and conduct for all GACA AVSES employees who are involved in regulating airmen, air operators, air agencies, aerodromes, air navigation service providers and all other regulated persons.

B. Professionalism Definition. The GACA's policy on employee conduct is designed to encourage employees to maintain a level of professionalism that will promote the efficiency of the GACA and conform to accepted principles of conduct. Professionalism is a set of behavioral traits that enhances mission effectiveness both internally and externally by:

- Fostering collaboration with others
- Focusing on service
- Making a positive impact on organizational success

C. Standards of Professionalism. To ensure that every citizen can have complete confidence in the integrity of the Government, each GACA employee shall respect and adhere to the fundamental principles of ethical service as implemented in several government regulations.

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1) *Collaboration*. When interacting with others, the employee:

- Seeks support from and objectively listens to the suggestions and comments of others
- Demonstrates attention to and understands the concerns of others
- Identifies and resolves professional differences of opinion
- Communicates in an understandable and timely manner
- Offers assistance and shares information that will be useful in producing acceptable and complete solutions
- Remains calm and diplomatic in tense situations in which there may be a significant disagreement among parties
- Discusses problems openly and manages conflicts constructively so that work is not adversely impacted
- Inspector must understand the requirements at the outset of assignments
- Asks questions to assure a mutual understanding of expectations
- Informs individuals and regulated entities about guidance material and GACA directives
- Ensures that requirements are incorporated into final work products and designs
- Explains recommendations and decisions in a manner appropriate for the audience
- Listens to, accepts, and acts on feedback if appropriate
- Works with the public and industry to achieve and maintain regulatory compliance and improve safety
- When required to take regulatory action, explains the rationale and actions needed for resolution
- Avoids action or inaction that contributes to public perception of unfair or disparate treatment

2) Willful non-observance of the governing regulations, such as the requirements described below, constitutes grounds for disciplinary actions:

- Public service is a public trust, requiring employees to place loyalty to the laws, and ethical principles above private gain. Uphold with integrity the public trust involved in the position to which assigned.
- Employees shall not hold financial interests that conflict with the conscientious performance of duty
- Employees shall not engage in financial transactions using non-public Government information or allow the improper use of such information to further any private interest
- Each employee shall not solicit or accept any gift or other item of monetary value from any person or entity

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seeking official action from doing business with, or conducting activities regulated by the GACA, or whose interests may be substantially affected by the performance or non-performance of the employee's duties.

- Employees shall not disclose or discuss any confidential information or "official use only" information unless specifically authorized to do so or except as required on a "need-to-know" basis in the proper discharge of official duties. Confidential information shall not be disclosed to anyone who does not have the appropriate management clearance. In addition, employees shall not:

- o Disclose any official information obtained through or in connection with their government employment to any unauthorized person

- o Release any official information in advance of the time prescribed for its authorized issuance

- o Use, or permit others to use, any official information for private purposes, which is not available to the general public

- o Remove official documents or records from the files or place of work for personal reasons. The willful and unlawful falsification, concealment, mutilation, or unauthorized removal of official documents or records is prohibited by law.

- As an employer, the GACA is concerned with the private decision of any employee to use illicit psychoactive substances in a way that could affect the employee's work performance. As an employer with responsibility for aviation safety, the President is especially concerned when this private decision can affect the safety of the flying public. Use, possession, purchase, or being under the influence of psychoactive substances on duty by employees whose duties could affect the safety of people or property is considered a criminal activity and will result in disciplinary action and termination from the GACA.

- All employees shall disclose waste, fraud, abuse, and corruption to upper management. They shall also report known or suspected violations of law, regulations, or policy to upper management through appropriate channels

- Employees must obtain approval of all absences from duty (including leave without pay). An absence, which is not approved, will be charged as absence without leave

- Employees shall make no unauthorized commitments or promises of any kind intending to bind the Government

- Employees shall not use public office for private gain

- The President expects employees to conduct themselves off duty in a manner that will not adversely reflect on the GACA's ability to discharge its mission. Employees must conduct themselves while off duty in a manner that will not cause the public to question their reliability and trustworthiness in carrying out their responsibilities as employees of the GACA. Off duty criminal activity is regarded as misconduct and can result in disciplinary action.

- Employees shall protect and conserve Government property and shall not use it for other than authorized

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activities

- Employees shall act impartially and not give preferential treatment to any private organization or individual
- It is imperative that all employees be sensitive to the responsibilities and demands of their positions and be objective while performing their duties
- Employees shall not engage in outside employment or activities, including seeking or negotiating for employment, that conflict with official Government duties and responsibilities
- Employees shall put forth honest effort in the performance of their duties
- Employees must guard against allowing personal emotions or conflicts with industry personnel to influence their behavior or actions in providing assistance to operators, or in filing enforcement actions
- Do not make irresponsible, false, or defamatory statements that attack, without foundation, the integrity of other individuals or organizations (Employees are accountable for the statements they make and the views they express)

1.3.2.5. OFF THE JOB ETHICS AND CONDUCT.

A. Off Duty Behavior. The President expects Inspectors to conduct themselves off duty in a manner that will not adversely reflect on the Authority's ability to discharge its mission. Inspectors must conduct themselves while off duty in a manner that will not cause the public to question their reliability and trustworthiness in carrying out their responsibilities as employees of the GACA. Off duty criminal activity is regarded as misconduct and can result in disciplinary action.

B. Meeting Financial Obligations. All employees are expected to meet their private financial obligations in a proper and timely manner. Failure without sufficient excuse or reason to honor valid debts, including claims based on court judgements, or to make and adhere to reasonable arrangements for settlement, will constitute grounds for disciplinary action.

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CHAPTER 3. INSPECTOR RESPONSIBILITIES AND ADMINISTRATION

Section 3. Access to Regulated Areas

1.3.3.1. BACKGROUND. Aviation safety inspectors (Inspectors) are issued security passes and official credentials allowing them access to areas used for the operation of aircraft. The security passes issued to Inspector's allow for access to the secured areas of aerodromes. The official credentials that are issued to qualified Inspectors entitle an Inspector to uninterrupted access to any Saudi Arabian registered aircraft pilot compartment.

1.3.3.3. ACCESS TO PRIVATE REGULATED AREAS. Inspectors must advise the owner or agent of a private facility of their desire to enter the premises and the purpose of the visit. An Inspector has no authority to enter private property without the owner's permission. As a courtesy, the owner or agent should be invited to accompany the Inspector, as this gesture may encourage further cooperation. If the owner or agent is unable to accompany the Inspector, the Inspector should request permission for access to the area for the stated purposes.

1.3.3.5. ACCESS TO PUBLIC AERODROMES. The Inspector should give aerodrome management/security sufficient notice of the visit. If the occasion warrants, aerodrome management may be invited to accompany the Inspector. However, GACA Inspector's credentials authorize access to restricted areas without escort while conducting official GACA inspections.

1.3.3.7. DENIAL OF ACCESS. Inspectors must consider that entry into the property of another without authority or permission may be construed as trespassing, regardless of intent. It is rare that an Inspector is denied access for the purpose of conducting official duties; however, such a case should be referred to the appropriate supervisory authority.

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Section 4. Inspector Training Requirements to Perform Job Functions

1.3.4.1. GENERAL. This section provides the system level perspective on ensuring aviation safety inspectors (Inspectors) have the required training prior to performing job tasks, as necessary.

A. The GACA assigns each newly hired Inspector a position specialty which determines their primary job. This job forms the basis from which each new hire will be assigned tasks and associated training functions to complete for the GACA. The primary position specialty for which inspectors are hired are described in the GACA AVSES Training Manual. This manual also provides the basic guidelines for the required training that each Inspector must receive.

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Section 5. Inspector's Accessibility to the ICAO-NET Secure Site

1.3.5.1. General.

Accessibility to ICAO Annexes, documents, and all other relevant ICAO guidance materials is available through the ICAO-NET Secure site:

<https://portal.icao.int>

1.3.5.1.3 The ICAO -NET Secure site and its contents are protected by national and international copyright laws.

1.3.5.1.5. Reference is made to the ICAO State Letter A4/26.2-11/4 dated 6 May 2011 requesting contracting states to assign group manager(s) to become the administrators of the access rights information for a State or organization.

1.3.5.2. Policy.

1.3.5.2.1. It is the policy of GACA Aviation Standards that only GACA personnel whose job functions require access to the ICAO-NET Secure site will be granted access.

1.3.5.2.3. The administration and control of the ICAO-NET Secure site accessibility is within the jurisdictions of the Aviation Safety & Environmental Sustainability, The Regulations and Standards Directorate.

1.3.5.2.5. GACA Aviation Safety & Environmental Sustainability Administrative & Support Departments will continuously update the Regulations and Standards Directorate with names and positions of Aviation Safety & Environmental Sustainability Employees.

1.3.5.2.7. Upon continuous updates, the Aviation Standards Regulations and Standards Department will determine the employees requiring access to the ICAO-NET Secure site and perform the required procedure to grant them the required access.

1.3.5.3. Procedure.

1.3.5.3.1. Assignment of ICAO-NET Group Manager(s).

1.3.5.3.3. The Executive Vice President Aviation Safety & Environmental Sustainability assigns a group manager or more than one group manager in accordance with the ICAO State Letter A4/26.2-11/4 dated 6 May 2011 and informs the ICAO accordingly.

1.3.5.3.5. The assigned Group Manager(s) will follow the procedures set in the ICAO State Letter A4/26.2-11/4 dated 6 May 2011 in administrating accessibilities to the ICAO-NET Secure site.

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1.3.5.5. Application for ICAO-NET Secure Site.

1.3.5.5.1. Upon continuous updates from the Aviation Safety & Environmental Sustainability Administrative & Support departments, and Regulations and Standards directorate will determine the employees who require access to the ICAO-NET secure site and have each employee fill, sign, and submit the Aviation Standards (Form No. GACA_AVS_LEG_F-005 ver.01).

1.3.5.5.3. The Aviation Safety & Environmental Sustainability Regulation and Standards Directorate will forward the form to the assigned Group Manager(s) to take to appropriate actions to grant the required access in accordance with the ICAO State Letter A4/26.2-11/4 dated 6 May 2011.

1.3.5.7. Processing of Approved Forms by the Assigned Group Manager(s).

1.3.5.7.1. Upon receiving the approved forms, the assigned Group Manager(s) will follow the procedure set in the ICAO State Letter A4/26.2-11/4 dated 6 May 2011 to grant the employee's access to the ICAO-NET Secure site.

1.3.5.7.3 The assigned Group Manager(s) will communicate with the affected employees accordingly.

1.3.5.7.5. The assigned Group Manager(s) will update the records of all GACA personnel who have access to the ICAO-Net Secure site.

1.3.5.9. Processing of Termination of Access to the ICAO-NET Secure Site.

1.3.5.9.1. Upon continuous update from the Aviation Safety & Environmental Sustainability Administrative & Support department whenever an employee does not require the access to the ICAO-NET Secure site, or when an employee leaves his/her post, the Aviation Standards Regulations and Standards department will communicate with the Group Manager(s) via email requesting the removal of the employee's accessibility to the ICAO-NET Secure site.

1.3.5.9.3. Upon receiving the request, the Group Manager(s) will follow the procedures set in the ICAO State Letter A4/26.2-11/4 dated 6 May 2011 to remove the employee's accessibility.

1.3.5.9.5. The Group Manager(s) will communicate back to the Regulation and Standards Directorate confirming the removal of the employee's accessibility.

1.3.5.9.7. The Group Manager(s) will update the records accordingly.

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Form No. GACA_AVS_LEG_F-005 - ver.01



ICAO Secure Portal Access Authorization Request

Requester Information:

Name : _____ **Position:** _____

Email : _____

I hereby declare that I will conform to the ICAO Secure Portal copyrights that None of the materials provided on the secure site may be used, reproduced or transmitted, in whole or in part, in any form or by any means, electronic or mechanical, including photocopying, recording or the use of any information storage and retrieval system, except as provided for in the Terms and Conditions of Use of the ICAO Web Site, without permission in writing from ICAO.

Signature:

Date:

General Manager Regulations & Standards Directorate Approval:

Name: _____

Signature:

Date:

Please contact us for any further information needed

E-mail: AS-legislations@gaca.gov.sa

Form No. GACA_S&AS_REG_F-005 – ver.01

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Section 6. Departmental Responsibilities over the GACAR Parts

1.3.6.1. General.

1. This section provides the guidelines depicting the relationship between the Aviation Safety & Environmental Sustainability department and the GACAR Parts.
2. For the purpose of this section, the relationship between the Aviation Safety & Environmental Sustainability departments and the GACAR Parts are categorized as “Departmental Role” and “GACAR Part Responsibilities.”
3. The “Departmental Role” depicts the GACAR Parts for which an Aviation Safety & Environmental Sustainability department member is responsible in terms of full comprehension, understanding, and applying the regulations and their associated GACA eBooks and other related materials.
4. The “GACAR Part Departmental Responsibility” depicts the responsibility of the Aviation Safety & Environmental Sustainability departments for the continuous tracking and updates of their GACAR Parts as a result of ICAO SARPs updates and any other updates emanating from the established process of rulemaking in addition to the GACAR Parts’ associated GACA eBooks materials and all other guidance and advisory materials.

1.3.6.3 Aviation Safety & Environmental Sustainability Departments. The following table depicts the Aviation Safety & Environmental Sustainability Department with the abbreviations used for the purposes of this section.

Aviation Safety & Environmental Sustainability Department	Abbreviation
Air Navigation Safety	ANS
Airworthiness	AIR
Environmental Sustainability	ENV
Flight Operations Safety	OPS
Aerodrome Safety	AGA
Personnel Licensing	PEL
Safety & Risk	SRD
Regulations & Standards	R&S

1.3.6.5 Aviation Safety & Environmental Sustainability Departmental Role. The table below depicts the responsibilities of each of the departments in the Aviation Safety & Environmental Sustainability as indicated in 1.3.6.1(3). “The

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Departmental Role” depicts the GACAR Parts for which an Aviation Safety & Environmental Sustainability department member is responsible in terms of full comprehension, understanding, and applying the regulations and their associated GACA eBooks and other related materials.”

GACAR Part	Department
Part 1 - Definitions, Abbreviations and Editorial Conventions	ALL
Part 2 - Units of Measurement to be Used in Air and Ground Operations	ALL
Part 3 - False and Misleading Statements	ALL
Part 4 - Mandatory Reporting of Accidents, Incidents and Statistics	ALL
Part 5 - Safety Management Systems	SRD, OPS, AIR, AGA, ANS
Part 7 - Problematic Use of Psychoactive Substances; Prevention and Safety Programs	SRD, OPS, AIR, AGA, ANS
Part 9 - Aircraft Under an Agreement for Transfer of Functions and Duties in Accordance with Article 83 bis of the Convention on International Civil Aviation	AIR, OPS, R&S
Part 11 - General Rulemaking Procedures	ALL
Part 13 - Compliance Enforcement Procedures, Petitions for Reconsideration, and Appeals	ALL
Part 21 - Certification Procedures for Products and Articles	AIR
Part 23 - Airworthiness Standards: Normal, Utility, Acrobatic, and Commuter Category	AIR
Part 25 - Airworthiness Standards: Transport Category Airplanes	AIR
Part 26 - Continued Airworthiness and Safety Improvements for Transport Category Airplanes	AIR
Part 27 - Airworthiness Standards: Normal Category Rotorcraft	AIR
Part 29 - Airworthiness Standards: Transport Category Rotorcraft	AIR
Part 31 - Airworthiness Standards: Manned Free Balloons	AIR
Part 33 - Airworthiness Standards: Aircraft Engines	AIR
Part 34 - Fuel Venting and Exhaust Emission Requirements for Turbine Engine	AIR
Part 35 - Airworthiness Standards: Propellers	AIR
Part 36 - Noise Standards: Aircraft Type and Airworthiness Certification	AIR,OPS
Part 39 - Airworthiness Directives	AIR
Part 43 - Maintenance, Preventive Maintenance, Rebuilding, and Alteration	AIR
Part 45 - Identification and Registration Marking	AIR
Part 47 - Aircraft Registration	AIR

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Part 48 - Registration And Marking Requirements For Model Aircraft And Small Unmanned Aircraft	OPS
Part 49 - Reserved	AIR
Part 60 - Flight Simulation Training Devices and Aviation Training Devices	OPS
Part 61 - Certification: Pilots, Flight Instructors, Ground Instructors, and Flight Engineers	OPS, PEL
Part 64 - Air Traffic Services Personnel Licensing and Ratings	ANS, PEL
Part 65 - Certification: Aircraft Dispatchers and Cabin Crew Members	OPS, PEL
Part 66 - Certification: Mechanics and Repairmen	AIR, PEL
Part 67 - Medical Standards and Certification	PEL, OPS, ANS ,AIR
Part 68 - Ground Services Personnel Work Permit	AGA, PEL
Part 71 - Designated Airspace, Routes, Points and Minimum Altitudes	ANS
Part 77 - Safe, Efficient Use and Preservation of the Navigable Airspace	ANS
Part 91 - General Operating and Flight Rules	OPS, AIR, ANS
Part 93 - Special Air Traffic Rules	ANS
Part 97 - Instrument Flight Procedures	ANS
Part 99 - Security Control of Air Traffic	ANS
Part 101 - Unmanned Balloons, Kites, Amateur Rockets, Model Aircraft, and Unmanned Aircraft Systems	OPS, AIR, ANS
Part 103 - Ultralight Vehicles	OPS, AIR, ANS
Part 105 - Parachute Operations	OPS, AIR, ANS
Part 107 - non-recreational civil small unmanned aircraft systems	OPS, AIR, ANS
Part 109 - Transportation of Dangerous Goods by Air	OPS, AIR, AGA
Part 115 - Operations: Commercial Air Operations Manned Balloons	OPS
Part 117 - Flight and Duty Limitations and Rest Requirements: Flight Crew Members	OPS
Part 119 - Certification: Saudi Arabian Commercial and Noncommercial Operations	OPS, AIR
Part 121 - Operations: Commercial Air Operators Operating Transport Category Aircraft or Commuter Category Airplanes	OPS, AIR
Part 125 - Operations: Noncommercial Operators Using Turbojets, Transport Category Aircraft, or Commuter Category Airplanes	OPS, AIR
Part 129 - Operations: Foreign Air Carriers	OPS, AIR
Part 133 - Aerial Work Operations	OPS, AIR
Part 135 - Operations: Commercial Air Operators Operating Other Than Transport Category Aircraft or Commuter Category Airplanes	OPS, AIR

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Part 137 – Certification, Authorization and Operation of Water Aerodrome	AGA
Part 138 - Certification, Authorization and Operation of Heliports	AGA, ANS
Part 139 - Certification, Authorization and Operation of Aerodromes	AGA,ANS
Part 141 - Pilot Schools	OPS
Part 142 - Training Centers	OPS
Part 143 - Flight Engineer, Cabin Crew Member, and Aircraft Dispatcher Training Schools	OPS
Part 144 - Air Traffic Controller Schools	ANS
Part 145 - Repair Stations	AIR
Part 147 - Aviation Maintenance Technician Schools	AIR
Part 149 - Aviation Clubs	OPS, AIR,AGA
Part 151 - Ground Service Providers	AGA
Part 156 - Environmental Sustainability Regulations	ENV
Part 157 - Carbon Offsetting and Reduction Scheme for International Aviation (CORSIA)	ENV
Part 170 – Certification: Air Navigation Service Providers	ANS
Part 171 - Air Traffic Services	ANS
Part 172 - Instrument Flight Procedure Services	ANS
Part 173 - Aeronautical Telecommunication Services	ANS
Part 175 - Aeronautical Information Services	ANS
Part 179 - Meteorology Services for Air Navigation	ANS
Part 183 - Representatives of the President	PEL,AIR,OPS,ANS,R&S
Part 193 - Protection of Submitted Safety Data and Safety Information	SRD, OPS, AIR, AGA, ANS
Part 199 - Repeals, Coming into Force, and Transitional Provisions	ALL
GACA Regulations Section 12 - Search and Rescue	ANS

1.3.6.7 GACAR Parts Departmental Responsibility. The table below depicts the GACAR Parts responsibility for each of the Aviation Safety & Environmental Sustainability Department as indicated in 1.3.6.1(4).” The “GACAR Part Departmental Responsibility” depicts the responsibility of the Aviation Safety & Environmental Sustainability departments for the continuous tracking and updates of their GACAR Parts as a result of ICAO SARPs updates and any other updates emanating from the established process of rulemaking in addition to the GACAR Parts’ associated GACA eBooks materials and all other guidance and advisory materials.”

GACAR Part	Department
Part 1 - Definitions, Abbreviations and Editorial Conventions	R&S
Part 2 - Units of Measurement to be Used in Air and Ground Operations	R&S
Part 3 - False and Misleading Statements	R&S

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Part 4 - Mandatory Reporting of Accidents, Incidents and Statistics	SRD
Part 5 - Safety Management Systems	SRD
Part 7 - Problematic Use of Psychoactive Substances; Prevention and Safety Programs	R&S
Part 9 - Aircraft Under an Agreement for Transfer of Functions and Duties in Accordance with Article 83 bis of the Convention on International Civil Aviation	AIR, OPS
Part 11 - General Rulemaking Procedures	R&S
Part 13 - Compliance Enforcement Procedures, Petitions for Reconsideration, and Appeals	R&S
Part 21 - Certification Procedures for Products and Articles	AIR
Part 23 - Airworthiness Standards: Normal, Utility, Acrobatic, and Commuter Category	AIR
Part 25 - Airworthiness Standards: Transport Category Airplanes	AIR
Part 26 - Continued Airworthiness and Safety Improvements for Transport Category Airplanes	AIR
Part 27 - Airworthiness Standards: Normal Category Rotorcraft	AIR
Part 29 - Airworthiness Standards: Transport Category Rotorcraft	AIR
Part 31 - Airworthiness Standards: Manned Free Balloons	AIR
Part 33 - Airworthiness Standards: Aircraft Engines	AIR
Part 34 - Fuel Venting and Exhaust Emission Requirements for Turbine Engine	AIR
Part 35 - Airworthiness Standards: Propellers	AIR
Part 36 - Noise Standards: Aircraft Type and Airworthiness Certification	AIR
Part 39 - Airworthiness Directives	AIR
Part 43 - Maintenance, Preventive Maintenance, Rebuilding, and Alteration	AIR
Part 45 - Identification and Registration Marking	AIR
Part 47 - Aircraft Registration	AIR
Part 48 - Registration And Marking Requirements For Model Aircraft And Small Unmanned Aircraft	OPS
Part 49 - Reserved	AIR
Part 60 - Flight Simulation Training Devices and Aviation Training Devices	OPS
Part 61 - Certification: Pilots, Flight Instructors, Ground Instructors, and Flight Engineers	OPS
Part 64 - Air Traffic Services Personnel Licensing and Ratings	ANS
Part 65 - Certification: Aircraft Dispatchers and Cabin Crew Members	OPS
Part 66 - Certification: Mechanics and Repairmen	AIR
Part 67 - Medical Standards and Certification	PEL
Part 68 - Ground Services Personnel Work Permit	AGA
Part 71 - Designated Airspace, Routes, Points and Minimum Altitudes	ANS
Part 77 - Safe, Efficient Use and Preservation of the Navigable Airspace	ANS
Part 91 - General Operating and Flight Rules	OPS, AIR, ANS

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Part 93 - Special Air Traffic Rules	ANS
Part 97 - Instrument Flight Procedures	ANS
Part 99 - Security Control of Air Traffic	ANS
Part 101 - Unmanned Balloons, Kites, Amateur Rockets, Model Aircraft, and Unmanned Aircraft Systems	OPS, AIR
Part 103 - Ultralight Vehicles	OPS, AIR
Part 105 - Parachute Operations	OPS
Part 107 - non-recreational civil small unmanned aircraft systems	OPS
Part 109 - Transportation of Dangerous Goods by Air	AGA
Part 115 - Operations: Commercial Air Operations Manned Balloons	OPS
Part 117 - Flight and Duty Limitations and Rest Requirements: Flight Crew Members	OPS
Part 119 - Certification: Saudi Arabian Commercial and Noncommercial Operations	OPS, AIR
Part 121 - Operations: Commercial Air Operators Operating Transport Category Aircraft or Commuter Category Airplanes	OPS, AIR
Part 125 - Operations: Noncommercial Operators Using Turbojets, Transport Category Aircraft, or Commuter Category Airplanes	OPS, AIR
Part 129 - Operations: Foreign Air Carriers	OPS, AIR
Part 133 - Aerial Work Operations	OPS, AIR
Part 135 - Operations: Commercial Air Operators Operating Other Than Transport Category Aircraft or Commuter Category Airplanes	OPS, AIR
Part 137 – Certification, Authorization and Operation of Water Aerodrome	AGA
Part 138 - Registration of Non- Certificated Aerodromes	AGA
Part 139 - Certification and Operations: Aerodromes	AGA
Part 141 - Pilot Schools	OPS
Part 142 - Training Centers	OPS
Part 143 - Flight Engineer, Cabin Crew Member, and Aircraft Dispatcher Training Schools	OPS
Part 144 - Air Traffic Controller Schools	ANS
Part 145 - Repair Stations	AIR
Part 147 - Aviation Maintenance Technician Schools	AIR
Part 149 - Aviation Clubs	OPS
Part 151 - Ground Service Providers	AGA
Part 156 - Environmental Sustainability Regulations	ENV
Part 157 - Carbon Offsetting and Reduction Scheme For International Aviation (CORSIA)	ENV
Part 170 – Certification: Air Navigation Service Providers	ANS
Part 171 - Air Traffic Services	ANS
Part 172 - Instrument Flight Procedure Services	ANS
Part 173 - Aeronautical Telecommunication Services	ANS
Part 175 - Aeronautical Information Services	ANS

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Part 179 - Meteorology Services for Air Navigation	ANS
Part 183 - Representatives of the President	R&S
Part 193 - Protection of Submitted Safety Data and Safety Information	SRD
Part 199 - Repeals, Coming into Force, and Transitional Provisions	R&S
GACA Regulations Section 12 - Search and Rescue	ANS

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Section 7. Regulatory Communication and Engagement Policy (RCEP)

1.3.7.1. General.

- A.** It is the general policy of GACA to establish continuous and constructive communication with all regulated entities to maximize the overall aviation safety performance.
- B.** The GACARs stipulate the aviation safety regulations for all civil aviation entities in the Kingdom of Saudi Arabia. The detailed policies, processes, and procedures for the implementation of the GACARs, are included in the GACAeBooks. Such details identify the specialized GACA personnel vested with the responsibilities of performing the vast variety of tasks related to GACARs compliance by regulated entities.
- C.** In addition, the GACA eBooks also, identifies the various regulated entities' personnel vested with specified GACAR compliance responsibilities.
- D.** To assure the highest possible level of communication efficiency, it is imperative that all involved parties should follow the established lines of communication as defines within the GACA eBooks.
- E.** This section is not applicable and doesn't apply to occurrence reporting and safety information systems as stipulated in GACAR Part 4.
- F.** For the purposes of this section an Inspector in Charge (IC) is a Principal Inspector (PMI&POI) /Lead Inspector designated for a regulated entity, or any other inspector assigned to perform certain tasks.
- G.** In addition, this section provides the policy and procedure to be followed by all involved parties in cases where the established communication protocols fail to achieve the required objectives.

1.3.7.2 Purpose.

The primary objective of the Regulatory Communication and Engagement Policy (RCEP) is to establish effective communication channels, ensuring that the chain of accountability remains unbroken. This policy aims to enhance safety practices, facilitate regulatory compliance, and promote environmental sustainability. Throughout the communication procedure, it is essential to maintain a clear hierarchy involving Inspectors in Charge, relevant managers, and regulated entities' post holders to ensure efficient and timely resolution of safety and environmental sustainability related issues.

1.3.7.3 Stakeholders.

The key stakeholders involved in the RCEP, include The Inspector in Charge (IIC), Section Heads, Directors, General

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Managers, the Executive Vice President (EVP) of Safety and Environmental Sustainability, the President, and regulated entities' post holders including the Accountable Executives (AE).

1.3.7.4 Communication Accountability for Aviation Safety and Environmental Sustainability.

The RCEP underscores the paramount importance of communication within the aviation safety and environmental sustainability field. To maintain a clear line of accountability for these vital aspects, only authorized post holders, whose names have been accepted by the President, shall bear the responsibility to initiate and maintain continuous and effective communication pertaining to aviation safety and environmental sustainability matters. This policy ensures that those entrusted with aviation safety and environmental sustainability responsibilities, are fully accountable for their actions and decisions, reinforcing the commitment to prioritize aviation safety and promote environmental sustainability within the KSA civil aviation sector.

1.3.7.5 Regulated Entities' Regulatory Compliance and Safety Risk Management Responsibilities.

Prior to applying to the Aviation Safety & Environmental Sustainability sector, a regulated entity is responsible for conducting thorough due diligence to ensure regulatory compliance and conducting comprehensive safety cases and risk assessments to identify and mitigate potential hazards and ensure the highest level of safety standards are upheld.. This includes undertaking the necessary steps to assess and address any compliance and safety risks before initiating communication or engagement with the respective Inspector in Charge (IC) of Aviation Safety & Environmental Sustainability.

By integrating risk management practices into their compliance efforts, regulated entities demonstrate their commitment to not only meeting regulatory requirements but also proactively addressing safety concerns and fostering a culture of continuous improvement.

1.3.7.6 Escalation Process.

In the communication process of matters pertaining to aviation safety and environmental sustainability, regulated entities are advised to allow a minimum of three (3) working days for an initial response. This timeframe provides an adequate period for the relevant parties to thoroughly review, assess, and respond to safety and environmental sustainability-related communications.

It is essential for the respective Inspector in Charge (IC) to uphold the highest professional standards and promptly address the concerns raised by regulated entities. The IC is expected to provide a professional and timely response within the designated timeframe, demonstrating his commitment to effective communication and collaboration.

In the event that a response is not received within this timeframe, the regulated entity may escalate the matter to the next appropriate level as per the established escalation process. Timely and effective communication between the IC and regulated entities is crucial to ensuring the prompt resolution of safety and environmental concerns.

The escalation process provides a clear framework for regulated entities to raise unresolved matters and seek appropriate resolution. By adhering to this process, regulated entities can ensure that concerns are properly addressed, and the necessary actions are taken.

1.3.7.7 Escalation Levels.

In order to maintain effective and streamlined communication channels with the Aviation Safety and Environmental

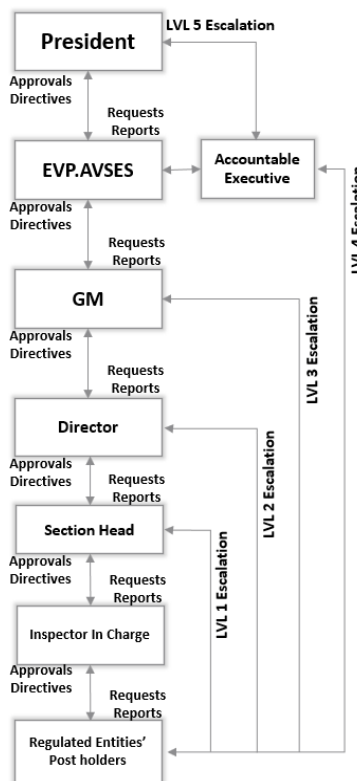
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Sustainability sector, it is expected that normal and routine communications and engagements occur exclusively with the respective Inspector in Charge (IC), however, for exceptional circumstances and unresolved aviation safety and environmental sustainability related communication issues, the following escalation process should be applied:

- A. Level 1: If an initial response is not received from the Inspector in Charge (IC) within (3) working days concerning aviation safety or environmental sustainability matters, the regulated entities' post holders may escalate the communication to the respective section head responsible for the relevant area.
- B. Level 2: If there is no response from the section head within (2) working days, the regulated entities' post holders may further escalate the communication to the respective director within the relevant department.
- C. Level 3: In the event that no response is received from the director within (1) working day, the applicant may further to escalate the communication to the general manager of the respective department or division.

This structured escalation scheme ensures that unresolved aviation safety and environmental sustainability issues receive the necessary attention with appropriate actions taken at each level. By following this process, stakeholders can facilitate effective communication and resolution of critical matters while maintaining the integrity and efficiency of the communication process within the Aviation Safety & Environmental Sustainability field. Figure 1 below depicts the established regulatory communication and engagement flow diagram.

Figure 1- Regulatory Communication and Engagement Flow diagram.



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1.3.7.8 Communication and Engagement with the President or the Executive Vice President of Aviation Safety & Environmental Sustainability.

At the appropriate escalation level, only the regulated entities' Accountable Executive may communicate and engage with the President and the Executive Vice President Aviation Safety & Environmental Sustainability.

1.3.7.9 Regular Evaluation.

GACA will conduct regular evaluations of the Regulatory Communication and Engagement Policy (RCEP), with a specific focus on its effectiveness in enhancing Aviation Safety & Environmental Sustainability feedback from stakeholders will be used to continuously improve and enhance communication process.

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CHAPTER 4. THE GENERIC APPROVAL OR ACCEPTANCE PROCESS FOR SPECIFIC OPERATIONS, PROGRAMS AND DOCUMENTS

Section 1. General Information and the Approval or Acceptance Process

1.4.1.1. GENERAL.

A. Generic Process. The general process of approval or acceptance of certain operations, programs, documents, procedures, methods, or systems is an orderly method used by General Authority of Civil Aviation (GACA) aviation safety inspectors (Inspectors) to ensure that such items meet regulatory standards and provide for safe operating practices. It is a modular, generic process that can be applied to many types of approval or acceptance tasks. The process consists of five distinct yet related phases and can result in approving or not approving, accepting or not accepting an applicant's proposal. It is important for an Inspector to understand that the process described in this section is not all inclusive, but rather a tool to be used with good judgment in conducting day to day duties and responsibilities. See Figure 1.4.1.1, Approval/Acceptance Process Flow Diagram.

B. Understanding the Process. The following guidance provides assistance in understanding and applying this process. It is essential to understand that this process may result in a decision to not approve or not accept an applicant's proposal. The process described is used to assist in making either positive or negative determinations.

C. Supplemental Procedures. This general process applies to many tasks described throughout the handbook. Each section describing an approval or acceptance task supplements the general process by outlining specific requirements for each phase.

1.4.1.3. PHASE ONE. The first phase starts when a person inquires about or states a need for a change in some aspect of an aviation activity. Phase One is initiated by the following two possible actions:

A. Applicant Initiation. The first phase starts when a person inquires about or states a need for a change in some aspect of an aviation activity. Phase One is initiated by the following two possible actions:

- Become thoroughly familiar with existing GACA policy and approval requirements
- Become familiar with the appropriate technical material
- Accurately assess the character and scope of the proposal
- Determine if a demonstration is required
- Determine the need for any coordination requirements
- Ensure that the applicant has a clear understanding of the minimum requirements that constitute an acceptable submission

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- Determine the date the applicant intends to implement the proposal

B. GACA Initiation. Phase One may also begin when the GACA conveys to the applicant or person a requirement related to its operation, which must be approved or accepted. For example, a Principal Operations Inspector (POI) may require an applicant to publish, in the approved company aircraft operating manual, information on low speed buffet. The applicant must research and understand that subject area before submitting a proposal to the GACA for evaluation. The Inspector should act in an advisory capacity to the applicant during the preparation of the submission. Such advice may include the following:

- The necessity for an authorization, waiver, or exemption
- The necessity for required demonstrations
- Clarification of the General Authority of Civil Aviation Regulations (GACAR) or handbook information
- Sources of specific technical information
- Acceptable standards for submission

C. Applicant Responsibility. The common element, regardless of whether an action is initiated by an applicant or the GACA is the effort expended by the applicant.

NOTE: It is essential (particularly in Phase One) for the applicant to have a clear understanding that, although the Inspector may provide advice and guidance to the applicant, the development of the final product submitted to the GACA is solely the responsibility of the applicant.

D. GACA/Applicant Communication. In Phase One, the Inspector must ensure that the applicant clearly understands the form, content, and documents required for the submission to be acceptable to the GACA. The applicant must be informed of the need and benefits of submitting required documents as early as possible and of its responsibility to advise the GACA, in a timely manner, of any significant changes in the proposal. Phase One of the process is illustrated as follows:

- Applicant makes inquiry or request to GACA
- GACA requires applicant to take an action
- Inspectors and applicant develop understanding of subject area
- Applicant understands form, content, and documents required for acceptable submission

1.4.1.5. PHASE TWO. Phase Two begins when the applicant formally submits a proposal for GACA evaluation. The request may be submitted in a variety of ways. The Inspector's first action, in Phase Two, is to review the applicant's submission to ensure that the proposal is clearly defined, and the documentation specified in Phase One has been provided. The required information must be complete and detailed enough to permit a thorough evaluation of the applicant's capability and competence to fully satisfy the applicable regulations, policy, and safe operating practices. Phase Two does not include a detailed operational and technical evaluation or analysis of the submitted information

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(see Phase Three). However, in Phase Two the submission must be examined in sufficient detail to assess the completeness of the required information. If the applicant's submission is not complete or the quality is obviously unacceptable, it must be returned immediately with an explanation of the deficiencies, before any further review and evaluation is conducted. Normally, unacceptable submissions should be returned with a written explanation of the reasons for its return. In complex cases, a meeting with the applicant and its key personnel may be necessary to resolve issues and agree on a mutually acceptable solution. If mutual agreements cannot be reached, the Inspector must terminate the meeting, inform the applicant that the submission is unacceptable, and return the submission. If all parties are able to reach agreement on measures to correct omissions or deficiencies, and the applicable principal Inspectors determine that the submission is acceptable, the applicant will be so informed, and Phase Three begins. Phase Two of the process is illustrated as follows:

- Applicant submits proposal
- Inspector makes initial examination of the documents for completeness with respect to requirements established in Phase One
- Inspector returns submitted proposal
- Inspector accepts submitted proposal

NOTE: It is important for the Inspector involved to keep the applicant advised of the status of its proposal. If the Inspector takes no other action, or if the submission is deficient and not returned in a timely manner, the applicant may assume that the GACA has tacitly accepted the submission and is continuing with the process. Timeliness of action depends on the situation as well as Inspector judgment and is discussed in pertinent sections of this handbook.

1.4.1.7. PHASE THREE.

A. Detailed Analysis. Phase Three is the GACA's detailed analysis, review, and evaluation of the applicant's proposal. These actions may take place entirely within the GACA office, at the site of operations, or at both facilities. In Phase Three the GACA evaluation is focused on the form, content, and technical quality of the submitted proposal to determine that the information in the proposal meets the following criteria:

- Is not contrary to any applicable GACAR
- Is not contrary to the direction provided in this handbook or other safety related documents
- Provides for safe operating practices

B. Evaluation Criteria. Criteria for evaluating the formal submission are found in the applicable chapters of this handbook. The Inspector must ensure that the documents adequately establish the applicant's capability and competence to safely conduct operations in accordance with the submitted proposal.

NOTE: Specific guidance for air operator and air agency certification is found in Volume 3, Air Operator & Air Agency - Certification. Inspectors responsible for the oversight of the air operators/air agencies will use guidance

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in this handbook for program review and approval.

C. Addressing Deficiencies. During Phase Three the Inspector must, in a timely manner, address any deficiencies in the submitted material before proceeding to subsequent phases. Discussion with the applicant may be sufficient to resolve certain discrepancies or questions or to obtain additional information. It may be necessary to return certain sections of the submission to the applicant for specific changes. However, when an Inspector determines that, for specific reasons, the material is grossly deficient or unacceptable; the Inspector must return the entire submission to the applicant with an appropriate explanation and immediately terminate this phase. If the results of the evaluation are acceptable and a demonstration requirement exists, the Inspector may need to grant some form of conditional, initial, or provisional approval to the proposal before continuing with the process.

D. Pre-Phase Four Planning. An important aspect of Phase Three is for Inspectors to begin planning the conduct of phase four while evaluating the applicant's formal submission, Inspectors should begin to formulate plans to observe and evaluate the applicant's ability to perform. These plans must be finalized before the actual demonstrations. Phase Three is illustrated as follows:

- Inspectors evaluate the formal submission for compliance with GACAR, compliance with the direction provided in this handbook, other safety related documents and safe operating practices
- When results of the Inspector's evaluation are unsatisfactory, return submission to the applicant for correction and/or terminate the phase
- Begin planning Phase Four
- When results of Inspector's evaluation are satisfactory, proceed with Phase Four (if demonstration required) and if appropriate, grant conditional approval or acceptance, or
- Proceed to Phase Five if demonstration not required

1.4.1.9. PHASE FOUR.

A. Applicant's Demonstration . In Phase Four the GACA finalizes plans to observe and evaluate the applicant's demonstration of its ability to perform in accordance with the procedures, guidelines, and parameters described in the formal proposal. Phase Four is an operational evaluation of the applicant's ability to function in accordance with the proposal evaluated in Phase Three. Usually, these demonstrations are required by regulation, and some examples include the following:

- Training programs
- Proving tests
- Emergency evacuation demonstration
- All weather terminal operations
- Air navigation operations

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B. Evaluation of Demonstration. Criteria and procedures for evaluating an applicant's demonstrated ability are described in applicable chapters of this handbook. The Inspector must plan for the conduct and observation of the demonstration to include such factors as participants, evaluation criteria, and sequence of events. During these demonstrations it is normal for minor discrepancies to occur. Discrepancies can often be resolved during the demonstration by obtaining commitments from responsible company officials. The Inspector responsible for overseeing a demonstration must evaluate each discrepancy in terms of its overall impact on the applicant's ability and competence to conduct the proposed operation. The Inspector must stop the demonstration in Phase Four when gross deficiencies or unacceptable levels of performance are observed. The Inspector must identify the phase of the general process for approval or acceptance to which the applicant must return or decide to terminate the process entirely when it is clear that continuation would not result in approval or acceptance. If the demonstration is unacceptable because crew members were unable to perform their assigned duties, it may be appropriate to advise the applicant that the process is terminated pending review and evaluation of the applicant's emergency training program, and that the applicant may need to reenter the process at Phase Two (that is, submit a new proposal).

C. Acceptable Demonstration. If the GACA evaluation of the applicant's demonstrated ability is acceptable, the process continues. Phase Four of the process is illustrated as follows:

- Inspector plans for the conduct and observation of the demonstration
- Applicant demonstrates ability
- Demonstration unsatisfactory; or
- Demonstration satisfactory

NOTE: An applicant shall not be authorized to conduct any particular operation until all applicable regulatory requirements are met and the applicant is clearly capable of conducting a safe operation in compliance with the GACAR and safe operating practices.

1.4.1.11. PHASE FIVE.

A. Approval or Acceptance. In Phase Five the GACA approves or accepts the applicant's proposal. If the proposal is not approved or accepted, the applicant is notified in Phase Three or Phase Four.

B. Indicating Approval. Approval is granted by letter, by a stamp of approval, by the issuance of operations specifications (OpSpecs), or by some other official means of conveying approval. Each section of this handbook that discusses a requirement for approval provides specific guidance concerning approval procedures and documentation. The following are examples of approvals granted by the GACA (i.e. the President):

- All weather terminal operations
- Training programs
- MEL

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- Cockpit checklist
- Company Aircraft Operating Manual (limitations, performance, and operating procedures)

C. Acceptances. Other proposals, submissions, or requests not requiring specific GACA approval but required to be submitted to the GACA are items that are presented for acceptance. Acceptance of an applicant's proposal may be accomplished by various means, including a letter, verbal acceptance, or by taking no action, which indicates there is no GACA objection to the proposal. Methods and procedures used to accept applicant proposals or submissions, when appropriate, are discussed in the applicable chapters of this handbook. Phase Five is illustrated as follows:

- GACA approves submission; or
- GACA accepts submission

NOTE: Sometimes GACA approval or acceptance of an applicant's proposal may be conditional in nature. For example, a training program may be initially approved provided that the flight simulation training device to be used in that program receives the applicable approval.

1.4.1.13. SUMMARY OF PROCESS. The general approval or acceptance process, as described, is referenced (in terms of the five phases) with the specific task requirements for each applicable job function. It is important for the Inspector to understand the modular concepts inherent in the process, the overall interrelationship of the phases, and that this general process is not all inclusive, but a tool to be used in the Inspector's Day to day duties and responsibilities.

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Figure 1.4.1.1. Approval/Acceptance Process Flow Diagram

